THE COMPLETE, PICTURE-BY-PICTURE GUIDE TO THE

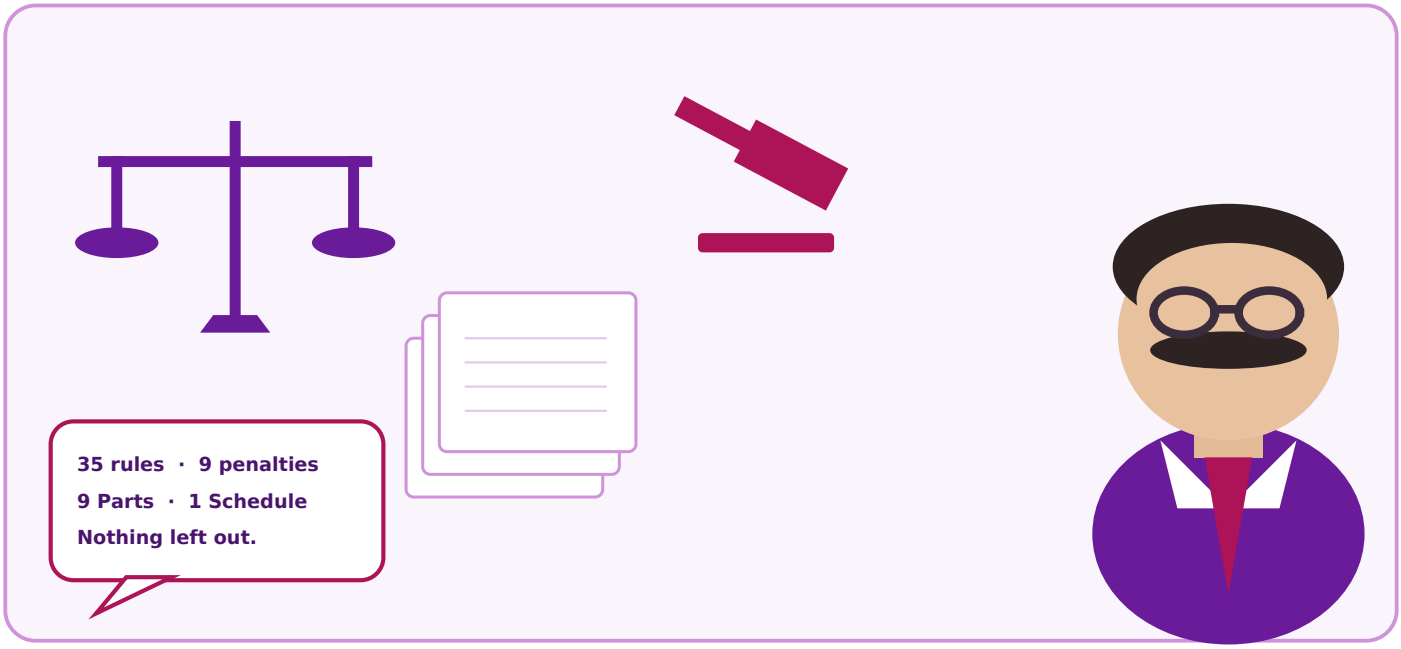
CCS (CCA) RULES 1965

THE COMIC BOOK

Central Civil Services
(Classification, Control and Appeal) Rules, 1965
Government of India · administered by DoPT

Every rule. Every sub-rule. Every proviso, exception, clause and explanation.

In plain, simple language — with stories, tables, timelines and memory tricks.



35	9	9	13	6	1
Rules	Penalties	Parts	Defined terms	Fixed deadlines	Schedule

INSIDE

Part I General · Part II Classification · Part III Appointing Authority · Part IV Suspension · Part V Penalties & Authorities
Part VI Procedure · Part VII Appeals · Part VIII Revision & Review · Part IX Miscellaneous · The Schedule · Master charts

Updated to include DoPT notification G.S.R. 21(E) dated 12 January 2026 · position as on 1 November 2026

A study guide for employees, disciplinary authorities and exam aspirants — not a substitute for the Gazette text.

> **“Law made simple — so the rule-book stops being a mystery.”**
>
> Babu-ji's promise: every rule, proviso, exception and deadline in one place — and nothing left out.

WHAT IS INSIDE

nine parts · thirty-five rules · one case, end to end

How to use this book 4
The 2-minute tour, the cast and the 8-stage map

Part I — General 7
Rules 1 to 3

Part II — Classification 11
Rules 4 to 7

Part III — Appointing Authority 13
Rules 8 and 9

Part IV — Suspension 15
Rule 10

Part V — Penalties & Authorities 21
Rules 11 to 13

Part VI — Procedure (major penalties) 26
Rules 14 to 21

Part VII — Appeals 43
Rules 22 to 28

Part VIII — Revision & Review 49
Rules 29 and 29-A

Part IX — Miscellaneous 52
Rules 30 to 35

The Schedule, posters & forms 55
Schedule · master charts · model forms · 30 questions · glossary

THE COLOUR CODE

THE RULE SAYS · THE PROVISO · THE EXPLANATION · THE NOTE

Magenta bar = the official words, quoted. Gold = a proviso. Teal = an explanation. Grey = a note in the Rules.
Green boxes = what is covered. Red boxes = what is excluded. Blue panels = office examples. Gold medals = things to remember.

In a hurry

Read the magenta rule headings, then the green and red boxes. Ten minutes a Part.

As a DA or IO

Read the gold 'watch out' panels and the Toolkits at the back. They are the file-notes.

For an exam

Read the Posters, the timeline chart and the 30 questions at the end. Then test yourself.

INDEX OF RULES

page on which each rule is first explained

Rule 1	7	Rule 11 — Explanation	23	Rule 14(24)	36
Rule 2	7	Rule 11(v) and 11(vi)	22	Rule 15	37
Rule 2(a)	7	Rule 12(1) and 12(2)	23	Rule 16	38
Rule 2(b) to 2(f)	8	Rule 12(3)	23	Rule 17	39
Rule 2(i) to 2(m)	9	Rule 12(4)(a)	24	Rule 18	40
Rule 2(g) and 2(h)	8	Rule 12(4)(b) and 12(4)(c)	24	Rule 19	40
Rule 3	9	Rule 13	25	Rule 20	41
Rule 4	11	Rule 14(1)	26	Rule 21	42
Rule 5	11	Rule 14(2)	27	Rule 22	43
Rule 6	11	Rule 14(3)	27	Rule 23	43
Rule 6-A	11	Rule 14(4)	28	Rule 24	44
Rule 7	12	Rule 14(5)	28	Rule 25	45
Rule 8	13	Rule 14(6)	29	Rule 26	46
Rule 9	13	Rule 14(7)	29	Rule 27	46
Rule 10 — case law	20	Rule 14(8)	30	Rule 28	47
Rule 10 — the practical kit	19	Rule 14(9) and 14(10)	31	Rule 29	49
Rule 10(1)	15	Rule 14(11)	31	Rule 29-A	50
Rule 10(2)	16	Rule 14(12) and 14(13)	32	Rule 30	52
Rule 10(3)	17	Rule 14(14)	33	Rule 31	52
Rule 10(4)	17	Rule 14(15)	33	Rule 32	52
Rule 10(5)	17	Rule 14(16) to 14(19)	34	Rule 33	53
Rule 10(6)	18	Rule 14(20)	34	Rule 34	53
Rule 10(7)	19	Rule 14(21)	35	Rule 35	54
Rule 11	21	Rule 14(22)	35		
Rule 11 — Provisos	22	Rule 14(23)	36		

THE FOUR RULES TO KNOW FIRST

Rule 10 — suspension: three grounds, 48 hours, 90 days, 180-day extensions.
Rule 14 — the 24-step inquiry: charge sheet, 15 days, evidence, defence, report.
Rule 15 — report + 15 days + UPSC advice, then a speaking order.

Rules 11 and 12 — nine penalties and who may impose them — are the pair every exam question is built on.

HOW TO USE THIS BOOK

THE 2-MINUTE TOUR

This is the **CCS (CCA) Rules, 1965** turned into a comic-book style guide. Every rule, sub-rule, proviso, exception, clause and explanation of the Rules is here — first as the **official words**, then in **plain language**, with pictures, tables and memory tricks.

- 35 rules · 9 penalties · 9 parts · 1 Schedule — nothing skipped.
- Written for the curious employee, the busy Disciplinary Authority, the new Inquiry Officer and the exam aspirant.
- Simple English. Short sentences. Real office examples.



Namaste! I am **Babu-ji**. I have spent 30 years in the establishment section. Stick with me and the CCA Rules will feel like a story, not a statute.

How each page works — Four voices on every page

1	2	3	4
Official words	Simple meaning	Watch out	Example

The book uses four layers, so you can read at the depth you need:

"The rule says"
The statutory text, in a serif font with a magenta bar. Short, accurate, quoted.

"In simple words"
The same idea in everyday language. Read only this if you are in a hurry.

Watch out
The trap, the proviso, the exception, the deadline. Where most cases are won or lost.

Example
A small office story that fixes the idea in memory.

Use this book for

- Understanding a charge sheet you have received.
- Running a departmental inquiry the right way.
- Writing or defending an appeal.
- Departmental exams (AAO, LDCE, MACP promotions).

Do not use it for

- Quoting in a court or tribunal — quote the Gazette text.
- Replacing advice of your Vigilance/Establishment section.
- Covering the CCS (Conduct) Rules — that is a different rule-book.
- State rules, PSU rules or All India Service rules, which differ.

NOTE
This is an educational guide. The law is what the Gazette notification says. Always verify the current text (and the latest DoPT instructions) before taking action in a live case.

The cast — Who is who in a disciplinary case

Appointing Authority
The authority that appointed you — the highest of the possible authorities. Rule 2(a).

Disciplinary Authority (DA)
The authority competent under the Rules to impose a penalty on you. Rule 2(g).

Inquiring Authority (IO)
The officer (or Complaints Committee) appointed to hold the inquiry. Rule 14(2).

Presenting Officer (PO)
The officer who presents the department's case against you. Rule 14(5)(c).

Charged Officer (CO)
You — the Government servant facing the charge sheet.

Defence Assistant (DA)
A colleague (or retired officer) who helps you in the inquiry. Rule 14(8).

Review Committee
The committee that reviews your suspension every 90 days. Rule 10(6).

UPSC
The Union Public Service Commission — consulted in specified cases. Rules 15(3), 19, 27, 29.

! **REMEMBER**
Two different "DA"s exist: **Disciplinary Authority** and **Defence Assistant**. In this book we write them out in full to avoid confusion.



BABU-JI SAYS

Six words carry the whole rule-book: **appointing**, **disciplinary**, **inquiring**, **presenting**, **appellate** and **reviewing** authority. If you can point to the person who is which, the case runs itself.

THE CHAIN
Appointing → Disciplinary → Inquiring → Appellate → Revisional.

THE ONE EXCEPTION
The same person may be Appointing and Disciplinary, but never Inquiring and Presenting.

A one-page example. An Assistant Section Officer (Group 'B', General Central Service) is served a major-penalty charge sheet by the Under Secretary. The Under Secretary is the **disciplinary authority**; the **appointing authority** is the Deputy Secretary; the **Inquiring Authority** is a retired Joint Director appointed under Rule 14(2); the **Presenting Officer** is a Section Officer. If a penalty is imposed, the appeal lies to the appointing authority under **Rule 24(1)(i)(a)** — because the order is made by an authority subordinate to it.

! **REMEMBER**
A missing paper is a **defect** — and every defect carries a rule number you can quote.

The paper trail — Five documents to recognise on sight

Document	What it must contain	Rule
Charge memorandum	Articles of charge, imputations, documents, witnesses	14(3), 14(4)(a)
Inquiry notice	Date, time and place of hearing, with notice	14(7), 14(9)
Inquiry report	Charges, defence, evidence, findings with reasons	14(23)
Disagreement note	Tentative reasons and a 15-day opportunity	15(2)
Penalty order	Findings, reasons, penalty, appellate forum	17, 30

THE MAP

ONE CASE, EIGHT STATIONS

Every disciplinary case — from a late-attendance warning to a dismissal — travels the same railway line. Learn the eight stations and you have learnt the whole rule-book.



Think of the Rules as a train timetable. Miss a station and the whole journey can be cancelled by a court.

1. **Stage 1 — Preliminary**
   Complaint, vigilance check, preliminary inquiry, decision whether a case exists at all. (No specific rule: this is administrative.)

2. **Stage 2 — Suspension, if needed**
   Rule 10. Only three grounds exist. Review every 90 days.

3. **Stage 3 — Charge sheet**
   Rule 14(3)-(4). Articles of charge, statement of imputations, list of documents and witnesses. 15 days to reply.

4. **Stage 4 — Inquiry**
   Rule 14(5)-(22). Presenting Officer, defence assistant, witnesses, cross-examination, ex parte if you do not appear.

5. **Stage 5 — Inquiry report**
   Rule 14(23)-(24). Findings on each charge; report in six months, extendable six months at a time.

6. **Stage 6 — Penalty**
   Rules 15-17. Report given to you, 15 days to represent, UPSC advice where needed, speaking order, communication.

7. **Stage 7 — Appeal**
   Rules 22-28. 45 days. Appellate authority can confirm, reduce, enhance, set aside or remit.

8. **Stage 8 — Revision / Review**
   Rules 29 and 29-A. President (and others) can call for records; review only on new material.

Station	Rule	You can challenge it?
Suspension	10	Yes — appeal under Rule 23(i)
Charge sheet / IO appointment	14	No appeal (Rule 22(ii)-(iii)); but writ court and representation
Inquiry report	14(23)	Not separately appealable; challenge with the final order
Penalty order	15/16/17	Yes — appeal, then revision
Appellate order	27	Revision under Rule 29; judicial review
President's order	29-A	No appeal (Rule 22(i)); judicial review only

NOTE
Article 311(1) says no dismissal/removal/reduction in rank by an authority subordinate to the appointing authority. Article 311(2) says no such penalty without an inquiry with charges, evidence and representation. The CCS (CCA) Rules are the machinery that makes Articles 309 and 311 work.

PART I — GENERAL

RULES 1 TO 3

Short title · Interpretation · Application

Part I is the doorway: it tells you the rule-book's name, defines its vocabulary and fixes who it applies to. Almost every successful challenge in service law starts with a definition from Part I.



Rule 2 is the dictionary. If a charge sheet uses “disciplinary authority” loosely, the whole case may fall.

Rule 1 Short title and commencement

THE RULE SAYS

(1) These Rules may be called the Central Civil Services (Classification, Control and Appeal) Rules, 1965.
(2) They shall come into force on the 1st December, 1965.

Rule 1

In simple words: the rule-book is named **CCS (CCA) Rules, 1965** and it started working on **1 December 1965**. It was made by the President using the **proviso to Article 309** of the Constitution, and after consulting the **Comptroller and Auditor-General** for the Indian Audit and Accounts Department (Article 148(5)).

The three C's
C lassification (who is Group A/B/C), **C** ontrol (discipline, penalties, inquiries), **A** ppeal (appeals, revision, review).

Made under
Proviso to Article 309 — the President's power to make rules for Government servants.

Consultation
CAG, for persons serving in the Indian Audit and Accounts Department.

Still alive
The same 1965 rules, amended many times — the latest amendment is dated 12 January 2026.

REMEMBER
Amendment years worth remembering: **2014** (Second Amendment Rules, 31 October 2014 — a copy of the UPSC's advice must be given to the officer, and Rule 32 was omitted); **2017** (Amendment Rules, G.S.R. 548(E) dated 2 June 2017 — the fixed timelines: 15 days for the defence, the 45-day ceiling, 10 working days for first appearance, six months for the inquiry); **2023 and 2024** (Schedule changes); **12 January 2026** (G.S.R. 21(E) — Rule 10(1) proviso and Rule 12(4)(a) substituted: the CAG/IA&AD exception widened).

Rule 2 Interpretation — the dictionary of the Rules

Rule 2 defines 13 expressions. These definitions decide **who can suspend you, who can punish you and who can hear your appeal** — so they are not academic. Learn the five big ones: appointing authority, disciplinary authority, Government servant, head of department and Secretary.

Rule 2(a) Appointing authority — “whichever is the highest”

THE RULE SAYS

In relation to a Government servant, “appointing authority” means — (i) the authority empowered to make appointments to the Service of which he is a member or to the grade in which he is included; or (ii) the authority empowered to make appointments to the post he holds; or (iii) the authority which appointed him to such Service, grade or post; or (iv) where he was a permanent member of another Service or held

Rule 2(a)

THE RULE SAYS (contd.)

another permanent post and has been in continuous employment, the authority which appointed him to that Service, grade or post — whichever authority is the highest authority.

Four possible answers are offered. You then pick the **highest** of them. This prevents a junior authority from punishing a senior employee simply because it issued the last promotion order.

Clue in the rule	Ask yourself
(i) Service / grade	Who appoints people to my Service or to my grade?
(ii) The post I hold	Who appoints to this post under the recruitment rules?
(iii) My actual appointment	Which authority signed my appointment?
(iv) My earlier permanent post	Was I a permanent member elsewhere before continuous employment?

e **EXAMPLE**
A Section Officer is appointed by the Joint Secretary, but the Service rules say the **Director** appoints to the grade. The Joint Secretary is higher — so the **Joint Secretary** is the appointing authority.

! **WATCH OUT**
The appointing authority is a **question of fact plus rules**, not of who signs your transfer order. Wrong identification of the appointing authority can vitiate a major penalty under Article 311(1) and Rule 12(4)(a).

Rule 2(b) to 2(f) Cadre authority, Central Civil Service, Commission, Defence Services, Department

2(b) Cadre authority
In relation to a Service, the same meaning as in the rules regulating that Service.

2(c) Central Civil Service / post
Includes a civilian Service or civilian post of the corresponding Group in the Defence Services.

2(d) Commission
The Union Public Service Commission (UPSC).

2(e) Defence Services
Services under the Ministry of Defence paid from Defence Estimates, but **not** governed by the Army Act 1950, Navy Act 1957 or Air Force Act 1950.

2(f) Department of GoI
Any establishment or organisation declared by the President, by notification in the Official Gazette, to be a department of the Government of India.

Rule 2(g) and 2(h) Disciplinary authority and "Government servant"

THE RULE SAYS

(g) "Disciplinary authority" means the authority competent under these rules to impose on a Government servant any of the penalties specified in Rule 11.

Rule 2(g)

THE RULE SAYS

(h) "Government servant" means a person who — (i) is a member of a Service or holds a civil post under the Union, and includes any such person on foreign service or whose services are temporarily placed at the disposal of a State Government, or a local or other authority; (ii) is a member of a Service or holds a civil

Rule 2(h)

THE RULE SAYS (contd.)

post under a State Government and whose services are temporarily placed at the disposal of the Central Government; (iii) is in the service of a local or other authority and whose services are temporarily placed at the disposal of the Central Government.

These persons are covered

- A member of a Central Civil Service.
- A holder of a Central civil post.
- A Central employee on foreign service.
- A Central employee lent to a State, local body or other authority.
- A State/local body employee lent to the Centre.

These are outside Rule 2(h)

- A private sector employee.
- A purely honorary or casual worker (see Rule 3).
- An All India Service officer (separate AIS rules).
- A railway servant under the Railway Code (Rule 3).
- A person engaged on contract, unless the terms say otherwise.

REMEMBER

Rule 20 and Rule 21 use exactly these three limbs: they decide **who disciplines a borrowed officer**. If you remember 2(h), the whole borrowing chapter becomes easy.

Rule 2(i) to 2(m) — Heads, Schedule, Secretary, Service

2(i) Head of the department

The authority declared head of department under the Fundamental & Supplementary Rules or the Civil Service Regulations.

2(j) Head of the office

The authority declared head of office under the General Financial Rules.

2(k) Schedule

The Schedule to these Rules — the big table of Services, appointing authorities and penalty powers.

2(m) Service

A civil service of the Union.

THE RULE SAYS

2(l) “Secretary” means the Secretary to the Government of India in any Ministry or Department, and includes — (i) a Special Secretary or Additional Secretary; (ii) a Joint Secretary in independent charge of a Ministry or Department; (iii) in relation to the Cabinet Secretariat, the Secretary to the Cabinet; (iv) in relation to the President's Secretariat, the Secretary to the President or the Military Secretary; (v) in relation to the PM's Secretariat, the Secretary to the PM; (vi) in relation to the (then) Planning Commission, the Secretary or Additional Secretary.

Rule 2(l)

NOTE

Why “Secretary” matters: under Rule 12(3), the **Secretary of the Ministry/Department** may impose any Rule 11 penalty on Group 'C' and Group 'D' employees serving in that Ministry — a very large practical power.

Rule 3 — Application — who is bound by these Rules

THE RULE SAYS

(1) These Rules shall apply to every Government servant including every civilian Government servant in the Defence Services, but shall not apply to — (a) any railway servant as defined in Rule 102 of Volume I of the Indian Railways Establishment Code; (b) any member of the All India Services; (c) any person in casual employment; (d) any person subject to discharge from service on less than one month's notice; (e) any person for whom special provision is made, in respect of matters covered by these Rules, by or under any

Rule 3(1)

THE RULE SAYS (contd.)

law for the time being in force or under any agreement entered into with the previous approval of the President.

Rule 3(1) covers

- Every Government servant.
- Every **civilian** Government servant in the Defence Services.
- Employees on deputation and foreign service (with Rules 20-21).
- Group A, B, C and (historically) Group D employees.

Exceptions in 3(1)(a)-(e)

- Railway servants under the Railway Establishment Code.
- Members of the All India Services.
- Casual labour.
- Persons liable to discharge on **less than one month's** notice.
- Persons covered by a special law, or an agreement approved by the President.

Then come three important riders:

1. **3(2)** — The President may, by order, exclude any Group of Government servants from all or any of these Rules.
2. **3(3)** — If a person to whom the Rules apply is temporarily transferred to a post covered by exception (a) or (e), the Rules **still apply** to him.
3. **3(4)** — If a doubt arises whether the Rules apply to a person, or which Service he belongs to, the matter goes to the **President**, whose decision is final.

e **EXAMPLE**
A Central Secretariat assistant is sent on deputation to the Railways. Even though railway servants are excluded by 3(1)(a), Rule 3(3) keeps the CCS (CCA) Rules alive for him during that temporary transfer.

! **WATCH OUT**
Railway, AIS and casual employees have **their own** discipline rules. Applying the CCS (CCA) Rules to them is a jurisdictional error that can be corrected even in writ jurisdiction.

Part I in one line: know your definitions (Rule 2), and know whether the Rules apply to you at all (Rule 3).



BABU-JI SAYS

Definitions feel boring until the day a charge sheet names the wrong authority. Then they are the whole case.

2(a) IN ONE LINE

Four candidate authorities; pick the highest.

3(1) IN ONE LINE

Railways, AIS, casual and sub-one-month staff are outside.

END OF CHAPTER · WHAT YOU JUST READ

- Rule 1 Short title and commencement
- Rule 2 Interpretation — the dictionary of the Rules

Definitions done. From here the Rules start talking about real things: groups, appointments, suspension, penalties.

COMING UP NEXT: Part II — Classification

PART II — CLASSIFICATION

RULES 4 TO 7

Services · Constitution of Services · Posts · 6-A · General Central Service

“Group A, B, C or D” decides which disciplinary authority, which appellate authority and which penalty power apply. Classification is therefore the skeleton of the whole rule-book.



No, “Group” is not the same as “Grade Pay”. Group is a legal category under these Rules.

Rule 4 Classification of Services

THE RULE SAYS

(1) The Civil Services of the Union shall be classified as follows: (i) Central Civil Services, Group 'A'; (ii) Group 'B'; (iii) Group 'C'; (iv) Group 'D'. (2) If a Service consists of more than one grade, different grades of such Service may be included in different groups.

Rule 4

A	B	C	D
Top management Gazetted	Middle level Gazetted	Supervisory clerical	Support staff

Sub-rule (2) is the subtle part: **one Service can straddle two groups**. So an officer can be in Group B for one post and Group A for the next, in the same Service. That is why Rule 12 Explanation II says a person promoted to a higher group is treated as belonging to that higher group for disciplinary purposes.

NOTE

After the Sixth Pay Commission, all Group 'D' posts (except in the Defence Services) were upgraded to Group 'C'. The Rules still mention Group 'D', but in most Ministries the category is now historical.

Rule 5 Constitution of Central Civil Services

THE RULE SAYS

The Central Civil Services, Group 'A', Group 'B', Group 'C' and Group 'D', shall consist of the Services and grades of Services specified in the Schedule.

Rule 5

In simple words: the **Schedule** is the official list. If your Service is not in the Schedule, you fall into the **General Central Service** (Rule 7).

Rule 6 Classification of Posts

THE RULE SAYS

Civil Posts under the Union, other than those ordinarily held by persons to whom these Rules do not apply, shall, by a general or special order of the President, be classified as: (i) Central Civil Posts, Group 'A'; (ii) Group 'B'; (iii) Group 'C'; (iv) Group 'D'.

Rule 6

Services are classified by Rule 4; **posts** are classified by Rule 6. Both use the same four groups. The difference matters because Rule 12 treats “member of a Service” and “holder of a post” separately.

Rule 6-A Class I / II / III / IV means Group A / B / C / D

THE RULE SAYS

All references to Central Civil Services/Central Civil Posts, Class I, Class II, Class III and Class IV in all Rules, Orders, Schedules, Notifications, Regulations and Instructions in force immediately before the commencement of these Rules shall be construed as references to Group 'A', 'B', 'C' and 'D' respectively.

Rule 6-A

REMEMBER

This is the **translation rule**. Old notifications still say “Class III”; read them as “Group C”. The same rule says any reference to “Class or Classes” means “Group or Groups”.

Rule 7 General Central Service

THE RULE SAYS

Central Civil posts of any group not included in any other Central Civil Service shall be deemed to be included in the General Central Service of the corresponding group, and a Government servant appointed to any such post shall be deemed to be a member of that Service unless he is already a member of any other Central Civil Service of the same group.

Rule 7

The **General Central Service (GCS)** is the default home for every Central post that no other Service claims. Most Secretariat and field-office posts outside the organised Services belong to the GCS.

Question	Answer	Rule
Is my Service listed?	Yes → you belong to that Service	5
Not listed?	You belong to the General Central Service	7
Already in another Service of the same group?	You stay in that Service	7
Old order says “Class II”?	Read it as Group 'B'	6-A
One Service, several grades?	Grades may sit in different groups	4(2)

Part II in one line: find your Group. It decides who can punish you and who can hear your appeal.



BABU-JI SAYS

Group is not rank. Two officers of the same rank can sit in different Groups if their posts are classified differently.

GROUP 'D' TODAY

Most Group 'D' posts were upgraded to Group 'C' after the Sixth Pay Commission.

EXAM PHRASE

“Group 'A' Central Civil Service” — say it exactly like that.

END OF CHAPTER · WHAT YOU JUST READ

- Rule 4 Classification of Services

You know your Group. Part III answers the next question: who appointed you?

COMING UP NEXT: Part III — Appointing Authority

PART III — APPOINTING AUTHORITY

RULES 8 AND 9

Who can appoint, can also (with Rule 12) punish. Part III splits the appointment power between the President (Group 'A') and the authorities named in the Schedule (Groups B, C, D).



The President appoints Group 'A' — but the President is a very busy person, so the power is usually delegated.

Rule 8 Appointments to Group 'A' Services and Posts

THE RULE SAYS

All appointments to Central Civil Services, Group 'A' and Central Civil Posts, Group 'A', shall be made by the President: Provided that the President may, by a general or special order and subject to such conditions as he may specify in such order, delegate to any other authority the power to make such appointments.

Rule 8

In simple words: **the President appoints Group 'A' officers** — in practice through a general delegation order to Ministries and Departments. That delegation is what makes a Joint Secretary or Secretary the appointing authority for most Group 'A' posts.

WATCH OUT

When the President delegates the power to appoint, the delegate also gets the power to **suspend and discipline** under Rules 10 and 12 — up to the limits in the Schedule. But the **President personally** may impose any penalty on any Government servant at any time (Rule 12(1)), and appeals against certain orders go to the President (Rule 24).

Rule 9 Appointments to other Services and Posts

THE RULE SAYS

(1) All appointments to the Central Civil Services (other than the General Central Service) Group 'B', Group 'C' and Group 'D' shall be made by the authorities specified in this behalf in the Schedule: Provided that in respect of Group 'C' and Group 'D' Civilian Services or civilian posts in the Defence Services, appointments may be made by officers empowered in this behalf by the aforesaid authorities.

Rule 9(1)

THE RULE SAYS

(2) All appointments to Central Civil Posts, Group 'B', Group 'C' and Group 'D', included in the General Central Service shall be made by the authorities specified in that behalf by a general or special order of the President or, where no such order has been made, by the authorities specified in this behalf in the Schedule.

Rule 9(2)

Situation	Appointing authority
Group 'A' Service or post	The President (Rule 8) — usually delegated
Group B/C/D of an organised Service	As named in the Schedule (Rule 9(1))
Group B/C/D post in the General Central Service	As ordered by the President, else the Schedule (Rule 9(2))
Defence civilian Group C/D	Officers empowered by the Schedule authority (proviso to Rule 9(1))

! **REMEMBER**
Exam memory hook: Rule 8 = President = Group 'A'. Rule 9 = Schedule = the rest. Rule 12 then converts appointing authority into disciplinary authority.

1. **Step 1 · Read the Schedule**
Find the row for your Service or post. Column (3) names the appointing authority.

2. **Step 2 · No row?**
Look for a general or special order of the President (Rule 9(2)). If there is none, the Schedule applies.

3. **Step 3 · Group 'A'**
Check the delegation order issued under the proviso to Rule 8.

4. **Step 4 · Cross-check**
The appointing authority is normally the authority whose name is on your appointment order.

e **EXAMPLE**
A Section Officer in a Ministry is appointed by the Deputy Secretary under the Schedule. The Under Secretary issues a major-penalty order. The order is **void** — Rule 12(4)(a) and Article 311(1) — because the Under Secretary is subordinate to the Deputy Secretary. The correct authority to sign is the Deputy Secretary, or any authority above that rank.

Part III in one line: appointment power is the root of disciplinary power.



BABU-JI SAYS
The President signs almost nothing personally — but almost every Group 'A' order says “by order and in the name of the President”. That is the delegation at work.

ARTICLE 311(1)
A subordinate authority cannot dismiss, remove or reduce in rank.

RULE 12(4)(a)
Same rule, read inside the CCS (CCA) Rules.

END OF CHAPTER · WHAT YOU JUST READ

- Rule 8 Appointments to Group 'A' Services and Posts
- Rule 9 Appointments to other Services and Posts

Now the part every employee reads first — suspension, and its three grounds and two clocks.

COMING UP NEXT: Part IV — Suspension

PART IV — SUSPENSION

RULE 10

Ten sub-rules · 2 provisos · 1 Explanation · 1 major 2026 amendment

Suspension is **not a penalty**. It is a holding operation: you are kept away from duty while a case is examined. Because it hurts without any finding of guilt, the Rules surround it with conditions, time-limits and reviews.



Only three grounds exist. If a suspension order cites a fourth reason, it is probably bad in law.

Rule 10(1) Who can suspend you — and on what grounds

THE RULE SAYS

The appointing authority or any authority to which it is subordinate or the disciplinary authority or any other authority empowered in that behalf by the President, by general or special order, may place a Government servant under suspension — (a) where a disciplinary proceeding against him is contemplated or is pending; or (aa) where, in the opinion of the authority aforesaid, he has engaged himself in activities prejudicial to the interest of the security of the State; or (b) where a case against him in respect of any criminal offence is under investigation, inquiry or trial.

Rule 10(1)

Ground	Plain meaning	Typical case
(a) Proceedings contemplated or pending	A charge sheet is being prepared **or** has already been issued.	Annual property return mismatch; unauthorised absence; insubordination
(aa) Activities prejudicial to State security	The authority **opines** that you acted against the security of the State.	Leaking classified papers; suspected espionage links
(b) Criminal case pending	Offence under investigation, inquiry or trial — even if you are on bail.	FIR by CBI/ACB; trap case under the PC Act, 1988

Four classes of authority may suspend: the **appointing authority**, any authority **superior** to it, the **disciplinary authority**, and any authority specially **empowered by the President** by general or special order.

Suspension can be ordered by

- The appointing authority.
- Any authority to which the appointing authority is subordinate.
- The disciplinary authority.
- An authority empowered by the President's general or special order.

Suspension cannot be ordered by

- A colleague of equal rank.
- An authority junior to the appointing authority (except when specially empowered — and even then it must report at once).
- A court, in a departmental matter.
- A vigilance officer acting on his own — he only recommends.

Proviso to Rule 10(1) The reporting duty — and the 2026 widening

THE PROVISO

Provided that, except in the case of an order of suspension made by the Comptroller and Auditor-General in regard to a member of the Indian Audit and Accounts Service and in regard to an Assistant Accountant General or a member of General Central Service Group 'C' holding a Central Civil post in the Indian Audit and Accounts Department, where the order of suspension is made by an authority lower than the appointing authority, such authority shall forthwith report to the appointing authority the circumstances in which the order was made.

Proviso to Rule 10(1), as substituted by G.S.R. 21(E), 12 January 2026

NEW / LATEST

What changed on 12 January 2026. The old proviso exempted from the reporting duty only suspensions by the **CAG** of IA&AS members and Assistant Accountant Generals. The amendment adds **Group 'C' Central Civil posts in the Indian Audit and Accounts Department**. So the CAG (and the IA&AD hierarchy) may suspend such staff without the "report forthwith to the appointing authority" formality — a recognition that the CAG's disciplinary control under Article 148 is separate from the executive's.

REMEMBER

The proviso is a **procedural safeguard**, not a source of power. If a junior authority suspends you, the order is not automatically void — but the failure to report forthwith is a strong ground in appeal.

Rule 10(2) — Deemed suspension — when the law suspends you without an order

THE RULE SAYS

A Government servant shall be deemed to have been placed under suspension by an order of the appointing authority — (a) with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding forty-eight hours; (b) with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Rule 10(2)

48	2	0
hours of custody the trigger	modes of deemed suspension	orders needed by the department

Deemed suspension operates by force of law. No order is passed; the moment the condition is met, you are under suspension, and it dates back to the **date of detention** (or conviction) — not to the date somebody in the office notices.

THE EXPLANATION

Explanation — The period of forty-eight hours referred to in clause (b) of this sub-rule shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

Explanation to Rule 10(2)

EXAMPLE

Detained on Monday at 6 pm, released on Wednesday at 8 pm — that is 50 hours, so deemed suspension applies from **Monday 6 pm**. If released after 40 hours, no deemed suspension arises, though an express order under 10(1) is still possible.

WATCH OUT
Deemed suspension and pay: a deemed suspension is treated exactly like an ordered suspension for subsistence allowance, headquarters and leave. But it **does not** continue automatically after the criminal case ends — it must be reviewed or revoked.

Rule 10(3) When a penalty is set aside in appeal or review

THE RULE SAYS
Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant under suspension is set aside in appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

Rule 10(3)

Read it as a **continuous thread**: you were suspended, you were dismissed, the dismissal was set aside and the case was sent back — the law treats you as having been under suspension the whole time, without a gap.

Rule 10(4) When a court sets aside the penalty

THE RULE SAYS
Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant is set aside or declared or rendered void in consequence of or by a decision of a Court of Law and the disciplinary authority, on a consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the Government servant shall be deemed to have been placed under suspension by the Appointing Authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

Rule 10(4)

THE PROVISO
Provided that no such further inquiry shall be ordered unless it is intended to meet a situation where the Court has passed an order purely on technical grounds without going into the merits of the case.

Proviso to Rule 10(4)

Court's reason for setting aside	Fresh inquiry?	Suspension?
Purely technical — e.g. wrong authority signed, no inquiry held, rules of natural justice ignored	Yes, permitted	Deemed from the original dismissal date
On merits — evidence did not prove the charge, or the charge itself fails	No	No deemed suspension

WATCH OUT
The proviso protects against **“re-litigating after losing on merits”**. Setting aside on technical grounds is an invitation to hold a proper inquiry — not a verdict of innocence; but the officer is restored in the meantime.

Rule 10(5) How long suspension lasts, and who can end it

THE RULE SAYS
(a) Subject to the provisions contained in sub-rule (7), an order of suspension made or deemed to have been made under this rule shall continue to remain in force until it is modified or revoked by the authority competent to do so. (b) Where a Government servant is suspended or is deemed to have been suspended

Rule 10(5)

THE RULE SAYS (contd.)

(whether in connection with any disciplinary proceeding or otherwise), and any other disciplinary proceeding is commenced against him during the continuance of that suspension, the authority competent to place him under suspension may, for reasons to be recorded by him in writing, direct that the Government servant shall continue to be under suspension until the termination of all or any of such proceedings. (c) An order of suspension made or deemed to have been made under this rule may at any time be modified or revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.

1. **10(5)(a) — the default**
   Suspension continues until the competent authority modifies or revokes it. It does not lapse on its own.
2. **10(5)(b) — the second case**
   If a fresh disciplinary proceeding starts during suspension, the authority may, by a **written reason**, direct that suspension continues till all or any of the proceedings end.
3. **10(5)(c) — the escape hatch**
   The authority that made the order — **or any authority above it** — may modify or revoke it at any time, on its own motion.

! **REMEMBER**
Useful sentence for a representation: "Under Rule 10(5)(c), the order may be revoked at any time by the authority which made it or by a higher authority; I request a review on merits."

Rule 10(6) The 90-day review and the Review Committee

THE RULE SAYS

An order of suspension made or deemed to have been made under this rule shall be reviewed by the authority which is competent to modify or revoke the suspension, before expiry of ninety days from the effective date of suspension, on the recommendation of the Review Committee constituted for the purpose and pass orders either extending or revoking the suspension. Subsequent reviews shall be made before expiry of the extended period of suspension. Extension of suspension shall not be for a period exceeding one hundred and eighty days at a time.

Rule 10(6)



Stage	Deadline	Who acts
First review	Before 90 days from the effective date of suspension	Competent authority, on the Review Committee's recommendation
Order on review	Extend (up to 180 days at a time) or revoke	Competent authority — a speaking order
Every later review	Before the expiry of the extended period	Same cycle, every 180 days

Composition of the Review Committee (DoPT instructions): where the President is **not** the disciplinary or appellate authority, the Committee consists of the Secretary (or equivalent), the disciplinary authority and another officer of equal or higher rank; where the **President is the appellate authority**, it includes the disciplinary authority and two officers of equal or higher rank; where the **President is the disciplinary authority**, three officers senior to the suspended officer.

WATCH OUT
An extension of suspension is **not** a clerical formality. It must be a reasoned decision that the suspension is still necessary — the Supreme Court's **Ajay Kumar Choudhary** line of cases insists on review, and frowns on suspension beyond three months without justification.

Rule 10(7) The 90-day limit — and the deemed-suspension exception

THE RULE SAYS
An order of suspension made or deemed to have been made under sub-rule (1) or (2) of this rule shall not be valid after a period of ninety days unless it is extended after review, for a further period before the expiry of ninety days.

Rule 10(7)

THE PROVISO
Provided that no such review of suspension shall be necessary in the case of deemed suspension under sub-rule (2), if the Government servant continues to be under suspension at the time of completion of ninety days of suspension and the ninety days period in such case will count from the date the Government servant detained in custody is released from detention or the date on which the fact of his release from detention is intimated to his appointing authority, whichever is later.

Proviso to Rule 10(7)

Consequence of a valid review
- Suspension continues in force beyond day 90.
- Fresh extension can run 180 days at a time.
- Subsistence allowance continues (FR 53).

Consequence of no review at all
- The suspension **ceases to be valid** after 90 days.
- Reinstatement follows as a matter of course.
- The period may have to be treated as duty.

REMEMBER
Memory hook — 48 · 90 · 180. 48 hours for deemed suspension; 90 days for the first review; 180 days for each extension. For a person in custody, the 90 days begin only when he is released or when the release is intimated — whichever is later.

Rule 10 — the practical kit Subsistence allowance, headquarters, resignation

Rule 10 itself is silent on money. The money is in **Fundamental Rule 53**, which is where every suspended employee should look:

Period	Subsistence allowance	Condition
First 3 months	50% of pay (plus DA and, subject to conditions, other allowances)	Automatic on suspension
Beyond 3 months — delay not attributable to you	May be raised to **75%**	On a non-employment certificate and a written request
Beyond 3 months — delay attributable to you	May be reduced to **25%**	For reasons recorded in writing
Earned leave / duty	Subsistence allowance stops if you take leave	Request in writing

Headquarters
A suspended employee may not leave the headquarters without the sanction of the competent authority.

No “duty” during suspension
You cannot claim salary, only subsistence allowance. Nothing is deducted from leave account unless so ordered.

Resignation
DoPT instruction: normally **do not accept** the resignation of an employee under suspension — examine public interest and the pending case.

Retirement
Suspension does not postpone retirement, but the department may withhold pension/gratuity proceedings (Rule 9 CCS (Pension) Rules).

Promotion
A suspended employee is not considered for promotion/selection; the case is kept in a sealed cover if the selection is under way.

Passport / foreign travel
Requires clearance; a criminal case or suspension normally blocks it.

NOTE
Setting aside of suspension does not automatically mean the period is treated as duty. That is decided later under FR 54, after the case ends — by a specific, reasoned order. This is one of the most litigated points in service law.

Rule 10 in one line: three grounds, 48 hours, 90 days, 180-day extensions — and never a penalty.

Rule 10 — case law

Five principles courts keep repeating

1. **Suspension is not punishment** — it cannot be used as a shortcut to penalise (and a long suspension without progress in the inquiry invites interference).
2. **Review is mandatory** — mechanical extensions beyond 90 days without application of mind are bad (Ajay Kumar Choudhary v. Union of India, 2015).
3. **Reason to believe matters** — the order must show the authority applied its mind to the grounds in Rule 10(1).
4. **No suspension after retirement / on the day of retirement** to bypass pension rules.
5. **Reinstatement does not wash away the case** — the inquiry can continue; but the suspension cannot be revived without a fresh order.

WATCH OUT
A suspension order that recites a ground not found in Rule 10(1) — for example "to avoid embarrassment to the department" — is vulnerable. The safest orders quote the clause: "(a) disciplinary proceedings are contemplated" or "(b) a case in respect of a criminal offence is under investigation".



BABU-JI SAYS
Suspension is the rule people fear most and understand least. It is not a punishment, it has a shelf life, and it can be revoked at any time by a higher authority.

THREE CLOCKS
48 hours · 90 days · 180 days — that is the whole of Rule 10.

ONE SENTENCE
"Kindly review the suspension under Rule 10(5)(c) and Rule 10(6)."

END OF CHAPTER · WHAT YOU JUST READ

- Rule 10(1) Who can suspend you — and on what...

Next: the nine penalties, the two provisos that make two of them compulsory, and the nine things that are not penalties.

COMING UP NEXT: Part V — Penalties & Authorities

PART V — PENALTIES & AUTHORITIES

RULES 11 TO 13

9 penalties · 2 provisos · 9 explanations · 3 sub-rules of Rule 12 · Rule 13

Rule 11 is the menu of punishments. Rule 12 says who may serve them. Rule 13 says who may start the case. Everything in Part VI is only the **procedure** for what these three rules authorise.



Censure is a penalty. A “threat of censure” in a note sheet is not. The difference is the signature of the disciplinary authority.

Rule 11 The nine penalties

THE RULE SAYS

The following penalties may, for good and sufficient reasons and as hereinafter provided, be imposed on a Government servant, namely: —

Rule 11

Read the nine penalties as a **ladder** — a written reprimand at the bottom, loss of service at the top. The colour deepens with severity:

LESS SEVERE — MORE SEVERE

- **(i) Censure**
- **(ii) Withholding of promotion**
- **(iii) Recovery of pecuniary loss**
- **(iii-a) Reduction by one stage**
- **(iv) Withholding of increments**
- **(v) Reduction to a lower stage**
- **(vi) Reduction to a lower time-scale / grade / post**
- **(vii) Compulsory retirement**
- **(viii) Removal from service**
- **(ix) Dismissal from service**

Minor penalties — clauses (i) to (iv)

- (i) **Censure**.
- (ii) **Withholding of promotion**.
- (iii) **Recovery** from pay of the whole or part of any pecuniary loss caused by negligence or breach of orders.
- (iii-a) **Reduction to a lower stage** in the time-scale by one stage for up to **three years**, without cumulative effect and not adversely affecting pension.
- (iv) **Withholding of increments** of pay.

Major penalties — clauses (v) to (ix)

- (v) **Reduction to a lower stage** in the time-scale for a specified period, with directions on increments during the period and on future increments.
- (vi) **Reduction to a lower time-scale, grade, post or Service** for a specified period, with a bar on promotion, and directions on increments and seniority.
- (vii) **Compulsory retirement**.
- (viii) **Removal** from service — not a disqualification for future Government employment.
- (ix) **Dismissal** — ordinarily a disqualification for future Government employment.

NOTE
The split matters. Minor penalties can be imposed through the short procedure of Rule 16; major penalties need the full machinery of Rules 14 and 15 — charge sheet, inquiry, evidence, report, representation and a speaking order.

Rule 11(v) and 11(vi) — The two "reduction" penalties — read with care

	Clause (v) — reduction to a lower stage	Clause (vi) — reduction to a lower time-scale, grade, post or Service
What falls	A **stage** within the same time-scale of pay	A **whole** time-scale, grade, post or Service
Period	A specified period	A specified period
Increments	Directions whether increments accrue during the period, and whether future increments are postponed	Directions whether, on promotion after the period, the reduction postpones future increments and to what extent
Promotion	Not barred as such	**Barred** during the period
Seniority	Generally unaffected beyond the pay stage	Directions whether the original seniority in the higher time-scale/grade is regained

WATCH OUT
Do not confuse clause (iii-a) — a **minor** penalty of one stage for up to three years — with clause (v), a **major** penalty. Clause (iii-a) can never have cumulative effect and can never touch pension.

Rule 11 — Provisos: The two provisos: mandatory dismissal and the exceptional escape

THE PROVISO
Provided that, in every case in which the charge of possession of assets disproportionate to known sources of income or the charge of acceptance from any person of any gratification, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act is established, the penalty mentioned in clause (viii) or clause (ix) shall be imposed:

First proviso to Rule 11

THE PROVISO
Provided further that in any exceptional case and for special reasons recorded in writing, any other penalty may be imposed.

Second proviso to Rule 11

If the charge is established

- Possession of assets disproportionate to known sources of income.
- Acceptance of gratification other than legal remuneration as a motive or reward.
- → Penalty **must** be removal (viii) or dismissal (ix).

Unless it is exceptional

- The second proviso allows any other penalty.
- But **special reasons must be recorded in writing**.
- Silence on reasons = the order is defective.

EXAMPLE
A clerk is proved to have accepted ₹20,000 to pass a file. The DA must impose removal or dismissal; if it wants to show mercy and impose a reduction of pay instead, it must write down why this is an "exceptional case" — and be ready to defend that in appeal.

REMEMBER
The two charges in the first proviso are the classic **vigilance** charges. Everything else — absence, insubordination, negligence — leaves the choice of penalty to the disciplinary authority, subject to proportionality.

Rule 11 — Explanation — Nine things that are NOT penalties

The Explanation lists nine actions that look like punishment but are **not** penalties under these Rules. Because they are not penalties, no inquiry is needed — and no appeal lies under Rule 23 against the penalty clauses.

No.	Not a penalty
(i)	Withholding of increments for **failure to pass a departmental examination** under the rules governing the Service.
(ii)	Stoppage at the **efficiency bar** for unfitness to cross it.
(iii)	**Non-promotion** after due consideration, whether substantive or officiating.
(iv)	**Reversion** of an officiating person to a lower Service, grade or post for unsuitability or on administrative grounds unconnected with conduct.
(v)	**Reversion of a probationer** to the permanent Service during or at the end of probation, per the terms of appointment.
(vi)	**Replacement** of a borrowed officer's services with the lending authority.
(vii)	**Compulsory retirement** on superannuation under the retirement rules.
(viii)	**Termination** of (a) a probationer per the terms of appointment; (b) a temporary employee under Rule 5(1) of the CCS (Temporary Service) Rules, 1965; (c) an employee under an agreement per its terms.
(ix)	**Compensation** awarded on the recommendation of the Complaints Committee under the sexual harassment provisions (Rule 3-C, CCS (Conduct) Rules, 1964).

WATCH OUT
Explanations (iii), (iv) and (viii) are the **most abused** entries in the Rules. A “termination simpliciter” of a temporary employee under Rule 5(1) of the Temporary Service Rules is valid only if it is **not** a disguise for a punishment. If the order is founded on misconduct, it is a penalty and needs a full inquiry — the Radhey Shyam Gupta / Pavanendra Narayan Verma line of cases.

Rule 12(1) and 12(2) — Who may impose penalties

THE RULE SAYS

(1) The President may impose any of the penalties specified in Rule 11 on any Government servant. (2) Without prejudice to the provisions of sub-rule (1), but subject to the provisions of sub-rule (4), any of the penalties specified in Rule 11 may be imposed on — (a) a member of a Central Civil Service other than the General Central Service, by the appointing authority or the authority specified in the Schedule in this behalf or by any other authority empowered in this behalf by a general or special order of the President; (b) a person appointed to a Central Civil Post included in the General Central Service, by the authority specified in this behalf by a general or special order of the President or, where no such order has been made, by the appointing authority or the authority specified in the Schedule in this behalf.

Rule 12(1) and (2)

For an organised Central Civil Service

- The **appointing authority**.
- The authority named in the **Schedule**.
- Any authority **empowered by the President's order**.
- All subject to Rule 12(4).

For a General Central Service post

- The authority named in a **general or special order** of the President.
- If there is no such order — the **appointing authority**.
- Or the authority named in the **Schedule**.
- All subject to Rule 12(4).

Rule 12(3) The Secretary's power over Group C and Group D

THE RULE SAYS

Subject to the provisions of sub-rule (4), the power to impose any of the penalties specified in Rule 11 may also be exercised, in the case of a member of a Central Civil Service, Group 'C' (other than the Central Secretariat Clerical Service), or a Central Civil Service, Group 'D' — (a) if he is serving in a Ministry or Department of the Government of India, by the Secretary to the Government of India in that Ministry or Department; or (b) if he is serving in any office, by the head of that office, except where the head of that office is lower in rank than the authority competent to impose the penalty under sub-rule (2).

Rule 12(3)

This is a **parallel power**, not a substitute. It lets the Secretary of a Ministry, or the head of a field office, impose any Rule 11 penalty on Group 'C' and Group 'D' staff — provided the head of office is not junior to the authority competent under Rule 12(2).

REMEMBER

Two carve-outs to remember: the **Central Secretariat Clerical Service** is excluded from Rule 12(3); and **Defence civilians** are governed by Part V of the Schedule.

Rule 12(4)(a) No major penalty by a subordinate authority

THE RULE SAYS

Notwithstanding anything contained in this rule — (a) except where the penalty specified in clause (v) or clause (vi) of Rule 11 is imposed by the Comptroller and Auditor-General on a member of the Indian Audit and Accounts Service, an Assistant Accountant General or a member of General Central Service Group 'C' holding a Central Civil post in the Indian Audit and Accounts Department (other than a regular member of the Indian Audit and Accounts Service), no penalty specified in clause (v) to (ix) of that rule shall be imposed by any authority subordinate to the appointing authority.

Rule 12(4)(a), as substituted by G.S.R. 21(E), 12 January 2026

NEW / LATEST

What the 12 January 2026 amendment did. It aligns Rule 12(4)(a) with the new Rule 10(1) proviso: the exception for the **CAG** now expressly covers a **member of General Central Service Group 'C' holding a Central Civil post in the IA&AD**, in addition to IA&AS members and Assistant Accountant Generals. Earlier the exception mentioned only IA&AS members and Assistant Accountant Generals — which created doubt about Group 'C' IA&AD staff.

WATCH OUT

This clause is the statutory echo of **Article 311(1)**: no dismissal, removal or reduction in rank by an authority subordinate to the appointing authority. If a junior officer signs the dismissal order, the order fails — no matter how good the evidence.

Rule 12(4)(b) and 12(4)(c) Borrowed officers and LBSNAA probationers

THE RULE SAYS

(b) where a Government servant who is a member of a Service other than the General Central Service or who has been substantively appointed to any civil post in the General Central Service, is temporarily appointed to any other Service or post, the authority competent to impose on such Government servant any of the penalties specified in clauses (v) to (ix) of Rule 11 shall not impose any such penalties unless it has consulted such authority, not being an authority subordinate to it, as would have been competent under sub-rule (2) to impose on the Government servant any of the said penalties had he not been appointed to such other Service or post;

Rule 12(4)(b)

THE RULE SAYS

(c) in respect of a probationer undergoing training at the Lal Bahadur Shastri National Academy of Administration, the Director of the said Academy shall be the authority competent to impose on such probationer any of the penalties specified in clauses (i) and (iii) of Rule 11 after observing the procedure laid down in Rule 16.

Rule 12(4)(c)

Explanation I

"Probationer", for clause (c), means a person appointed to a Central Civil Service on probation.

Explanation II

A Government servant promoted, whether on probation or temporarily, to a Service or post of the next higher Group is deemed to belong to that higher Group for the purposes of Rule 12.

EXAMPLE

e A Group 'B' officer is promoted on ad hoc basis to a Group 'A' post. For Rule 12, he is treated as a Group 'A' officer — so the authority competent for Group 'B' cannot dismiss him. Explanation II closes what would otherwise be an obvious loophole.

Rule 13 Who can institute proceedings

THE RULE SAYS

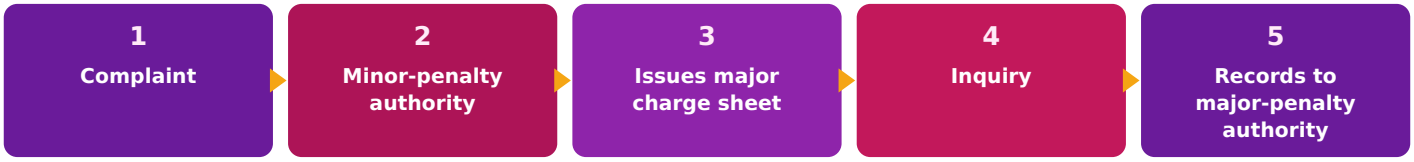
(1) The President or any other authority empowered by him by general or special order may — (a) institute disciplinary proceedings against any Government servant; (b) direct a disciplinary authority to institute disciplinary proceedings against any Government servant on whom that disciplinary authority is competent to impose under these rules any of the penalties specified in Rule 11.

Rule 13(1)

THE RULE SAYS

(2) A disciplinary authority competent under these rules to impose any of the penalties specified in clauses (i) to (iv) of Rule 11 may institute disciplinary proceedings against any Government servant for the imposition of any of the penalties specified in clauses (v) to (ix) of Rule 11 notwithstanding that such disciplinary authority is not competent under these rules to impose any of the latter penalties.

Rule 13(2)



Rule 13(2) is what makes the system work: a **minor-penalty authority can start a major-penalty case**. When the inquiry ends and the findings point to a major penalty, the records go to the authority competent to impose it — under Rule 14(21)(a).

REMEMBER

! **Exam hook:** Rule 12 = power to impose. Rule 13 = power to institute. They need not be in the same hands — and often are not.

Part V in one line: nine penalties, two provisos, nine explanations, three rules — and Article 311 standing behind all of it.

PART VI — PROCEDURE

RULES 14 TO 21

Major penalties · inquiry report · minor penalties · communication · common proceedings · special procedure · borrowed office

Part VI is where cases are actually won and lost. Almost every penalty quashed by a tribunal is quashed for a **procedural** defect in this Part — not because the officer was innocent.



Rule 14 has 24 sub-rules. Do them in order, record each step on file, and your order will survive appeal.

The big picture — Two roads to a penalty

1 Charge sheet → **2** Inquiry (Rule 14) → **3** Report (14/15) → **4** Penalty order

	Major penalties — clauses (v) to (ix)	Minor penalties — clauses (i) to (iv)
Governing rules	Rules 14 and 15	Rule 16
Charge sheet	Mandatory — articles of charge, imputations, documents, witnesses	Written intimation of the proposal and the imputations
Oral inquiry	Mandatory	Only if the DA thinks it necessary; **mandatory** for certain increment penalties (Rule 16(1-A))
Defence assistant	Yes (Rule 14(8))	Yes, if an inquiry is held
Inquiry report	Yes	Only if an inquiry was held
UPSC advice	Where necessary	Where necessary
Personal hearing	Through the inquiry	Representation only, unless an inquiry is ordered

WATCH OUT
The most common fatal error: imposing a major penalty after following the Rule 16 route. If the penalty falls in clauses (v) to (ix), a full Rule 14 inquiry is compulsory — there is no “short cut because the facts are obvious”.

Rule 14(1) — No major penalty without an inquiry

THE RULE SAYS

No order imposing any of the penalties specified in clauses (v) to (ix) of Rule 11 shall be made except after an inquiry held, as far as may be, in the manner provided in this rule and Rule 15, or in the manner provided by the Public Servants (Inquiries) Act, 1850, where such inquiry is held under that Act.

Rule 14(1)

“as far as may be”
Substantial compliance is enough — a harmless irregularity does not vitiate the inquiry. But a breach that causes prejudice does.

The 1850 Act route
For grave cases, a formal commission of inquiry under the Public Servants (Inquiries) Act, 1850 may be used instead.

Consequence of breach
The penalty order becomes void — not merely irregular.

Rule 14(2) Who holds the inquiry

THE RULE SAYS

Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against a Government servant, it may itself inquire into, or appoint under this rule or under the provisions of the Public Servants (Inquiries) Act, 1850, as the case may be, an authority to inquire into the truth thereof.

Rule 14(2)

THE PROVISO

Provided that where there is a complaint of sexual harassment within the meaning of Rule 3-C of the Central Civil Services (Conduct) Rules, 1964, the Complaints Committee established in each Ministry or Department or Office for inquiring into such complaints shall be deemed to be the inquiring authority appointed by the disciplinary authority for the purpose of these Rules.

Proviso to Rule 14(2)

THE EXPLANATION

Explanation — (i) Where the disciplinary authority itself holds the inquiry, any reference in sub-rule (7) to sub-rule (20) and in sub-rule (22) to the inquiring authority shall be construed as a reference to the disciplinary authority. (ii) Where the disciplinary authority appoints a retired Government servant as inquiring authority, any reference in sub-rule (7) to sub-rule (20) and in sub-rule (22) shall include such authority.

Explanation to Rule 14(2)

Who may be the Inquiring Authority

- The disciplinary authority itself.
- Another serving officer appointed for the purpose.
- A **retired** Government servant (Explanation (ii)).
- The Complaints Committee, in sexual-harassment cases (proviso).

Who should not be

- The Presenting Officer.
- A witness in the case.
- A person subordinate to the PO, or with a personal interest.
- An officer who has already prejudged the matter in a note.

Rule 14(3) Drawing up the charge sheet

THE RULE SAYS

Where it is proposed to hold an inquiry against a Government servant under this rule and Rule 15, the disciplinary authority shall draw up or cause to be drawn up — (i) the substance of the imputations of misconduct or misbehaviour into definite and distinct articles of charge; (ii) a statement of the imputations of misconduct or misbehaviour in support of each article of charge, which shall contain — (a) a statement of all relevant facts including any admission or confession made by the Government servant; (b) a list of documents by which, and a list of witnesses by whom, the articles of charge are proposed to be sustained.

Rule 14(3)

Ingredient	What it must contain	Why it matters
Articles of charge	Definite and distinct; one allegation per article; date, place, act, rule broken	Vagueness = no proper opportunity to defend
Statement of imputations	All relevant facts, including any **admission or confession**	Tells the officer exactly what he must meet
List of documents	Each document by which the charge is to be proved	Enables inspection and a real defence
List of witnesses	Each witness by whom the charge is to be proved	No surprise witnesses later (Rule 14(15) has limits)

e **EXAMPLE**
Bad article: “The officer committed irregularities in purchase.” Good article: “That the said Shri X, while functioning as Assistant Director (Stores) during 01.04.2023 to 31.07.2023, awarded supply order No. 17 dated 12.05.2023 to M/s Y without inviting quotations, in violation of Rule 149 of the GFR, 2017.”

! **REMEMBER**
Charge sheet test: could a reasonable officer, reading the article, know what he is accused of, when, where and which rule he broke? If not, the article is bad.

Rule 14(4) Delivery of the charge sheet — 15 days, extendable to 45

THE RULE SAYS
(a) The Disciplinary Authority shall deliver or cause to be delivered to the Government servant a copy of the articles of charge, the statement of the imputations of misconduct or misbehaviour and a list of documents and witnesses by which each article of charge is proposed to be sustained. (b) On receipt of the articles of charge, the Government servant shall be required to submit his written statement of defence, if he so desires, and also state whether he desires to be heard in person, within a period of fifteen days, which may be further extended for a period not exceeding fifteen days at a time for reasons to be recorded in writing by the Disciplinary Authority or any other Authority authorised by the Disciplinary Authority on his behalf:

Rule 14(4)(a) and (b)

THE PROVISO
Provided that under no circumstances, the extension of time for filing written statement of defence shall exceed forty-five days from the date of receipt of articles of charge.

Proviso to Rule 14(4)(b)

15	15	45
days to reply	days per extension	days — absolute outer limit

! **WATCH OUT**
The 45-day ceiling is **absolute**. A DA cannot extend beyond it. But if the officer simply does not reply, the inquiry proceeds (Rule 14(5)(b)) — silence is not a defence.

Rule 14(5) After the reply: inquire, or appoint an Inquiring Authority

THE RULE SAYS
(a) On receipt of the written statement of defence, the disciplinary authority may itself inquire into such of the articles of charge as are not admitted, or, if it considers it necessary so to do, appoint, under sub-rule (2), an inquiring authority for the purpose, and where all the articles of charge have been admitted by the

Rule 14(5)(a)

THE RULE SAYS (contd.)

Government servant in his written statement of defence, the disciplinary authority shall record its findings on each charge after taking such evidence as it may think fit and shall act in the manner laid down in Rule 15.

THE RULE SAYS

(b) If no written statement of defence is submitted by the Government servant, the disciplinary authority may itself inquire into the articles of charge, or may, if it considers it necessary to do so, appoint, under sub-rule (2), an inquiring authority for the purpose.

Rule 14(5)(b)

THE RULE SAYS

(c) Where the disciplinary authority itself inquires into any article of charge or appoints an inquiring authority for holding an inquiry into such charge, it may, by an order, appoint a Government servant or a legal practitioner, to be known as the "Presenting Officer", to present on its behalf the case in support of the articles of charge.

Rule 14(5)(c)

THE EXPLANATION

Explanation — For the purposes of this rule, the expression 'Government servant' includes a person who has ceased to be in Government service.

Explanation to Rule 14(5)

Situation after the charge sheet	What the DA does
Some charges admitted, some denied	Inquire into the denied charges only; admitted charges stand
All charges admitted in writing	Record findings on each charge after taking such evidence as it thinks fit; then Rule 15
No written statement at all	Inquire itself, or appoint an Inquiring Authority
Reply received and charges denied	Inquire itself, or appoint an Inquiring Authority; appoint a Presenting Officer

NOTE

The Explanation allows a **retired officer** to be appointed Presenting Officer — useful where the department's own officers are witnesses or are junior to the charged officer.

Rule 14(6) What the DA sends to the Inquiring Authority

THE RULE SAYS

The disciplinary authority shall, where it is not the inquiring authority, forward to the inquiring authority — (i) a copy of the articles of charge and the statement of the imputations of misconduct or misbehaviour; (ii) a copy of the written statement of defence, if any, submitted by the Government servant; (iii) a copy of the statements of witnesses, if any, referred to in sub-rule (3); (iv) evidence proving the delivery of the documents referred to in sub-rule (3) to the Government servant; and (v) a copy of the order appointing the Presenting Officer.

Rule 14(6)

REMEMBER

Item (iv) — **proof of delivery** — is the quiet hero of the file. Without it, the officer can later say he never received the charge sheet, and the ex parte inquiry collapses.

Rule 14(7) First appearance — 10 working days

THE RULE SAYS

The Government servant shall appear in person before the inquiring authority on such day and at such time within ten working days from the date of receipt by the inquiring authority of the articles of charge and the statement of the imputations of misconduct or misbehaviour, as the inquiring authority may, by notice in writing, specify, in this behalf, or within such further time, not exceeding ten days, as the inquiring authority may allow.

Rule 14(7)

10	10	30
working days for first appearance	more days on request	days max adjournment under 14(11)

In plain words: the Inquiring Authority writes to you fixing a **date within 10 working days** of receiving the charge papers. If you need more time, it can give you **up to 10 more days**. If you do not turn up, sub-rule (11) takes over.

Rule 14(8) Your Defence Assistant

THE RULE SAYS

(a) The Government servant may take the assistance of any other Government servant posted in any office either at his headquarters or at the place where the inquiry is held, to present the case on his behalf, but may not engage a legal practitioner for the purpose, unless the Presenting Officer appointed by the disciplinary authority is a legal practitioner, or the disciplinary authority, having regard to the circumstances of the case, so permits.

Rule 14(8)(a)

THE PROVISO

Provided that the Government servant may take the assistance of any other Government servant posted at any other station, if the inquiring authority having regard to the circumstances of the case, and for reasons to be recorded in writing, so permits.

Proviso to Rule 14(8)(a)

THE NOTE

Note — The Government servant shall not take the assistance of any other Government servant who has three pending disciplinary cases on hand in which he has to give assistance.

Note to Rule 14(8)(a)

THE RULE SAYS

(b) The Government servant may also take the assistance of a retired Government servant to present the case on his behalf, subject to such conditions as may be specified by the President from time to time by general or special order in this behalf.

Rule 14(8)(b)

Who can assist you	Condition
A serving Government servant at your headquarters or at the place of inquiry	Freely available
A serving Government servant at another station	Only if the Inquiring Authority permits, for recorded reasons
A retired Government servant	Permitted by Rule 14(8)(b), subject to the President's conditions
A **legal practitioner**	Only if the Presenting Officer is a legal practitioner, **or** the DA permits in view of the circumstances
A colleague who is already assisting in **3** pending cases	Not permitted

! **WATCH OUT**
Denial of a Defence Assistant can be fatal if it caused prejudice. But **there is no absolute right** to a lawyer — the rule is "no legal practitioner, unless...". Ask in writing, early, and record the refusal.

Rule 14(9) and 14(10) The plea

THE RULE SAYS
(9) If the Government servant who has not admitted any of the articles of charge in his written statement of defence or has not submitted any written statement of defence, appears before the inquiring authority, such authority shall ask him whether he is guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the inquiring authority shall record the plea, sign the record and obtain the signature of the Government servant thereon.

Rule 14(9)

THE RULE SAYS
(10) The inquiring authority shall return a finding of guilt in respect of those articles of charge to which the Government servant pleads guilty.

Rule 14(10)

i **NOTE**
A plea of guilt must be **voluntary and unambiguous**. If the officer says "I signed the file but I did not know", that is not a plea of guilt — record it as a denial.

Rule 14(11) If you do not appear — the ex parte drill

THE RULE SAYS
The inquiring authority shall, if the Government servant fails to appear within the specified time or refuses or omits to plead, require the Presenting Officer to produce the evidence by which he proposes to prove the articles of charge, and shall adjourn the case to a later date not exceeding thirty days, after recording an order that the Government servant may, for the purpose of preparing his defence — (i) inspect within five days of the order or within such further time not exceeding five days as the inquiring authority may allow, the documents specified in the list referred to in sub-rule (3); (ii) submit a list of witnesses to be examined on his behalf; (iii) give a notice within ten days of the order or within such further time not exceeding ten days as the inquiring authority may allow, for the discovery or production of any documents which are in the possession of Government but not mentioned in the list referred to in sub-rule (3).

Rule 14(11)

THE NOTE

Note 1 — If the Government servant applies orally or in writing for the supply of copies of the statements of witnesses mentioned in the list referred to in sub-rule (3), the inquiring authority shall furnish him with such copies as early as possible and in any case not later than three days before the commencement of the examination of the witnesses on behalf of the disciplinary authority.

Note 1 to Rule 14(11)

THE NOTE

Note 2 — The Government servant shall indicate the relevance of the documents required by him to be discovered or produced by the Government.

Note 2 to Rule 14(11)

5	10	3
days to inspect documents	days to seek new documents	days before witness copies

Read this sub-rule as a **four-part checklist for the ex parte file**: (1) require the Presenting Officer to produce evidence; (2) record an order allowing inspection and a list of Defence witnesses; (3) adjourn to a date **not later than 30 days**; (4) give copies of witness statements at least **3 days** before a witness is examined.

Rule 14(12) and 14(13) Getting documents from Government custody

THE RULE SAYS

(12) The inquiring authority shall, on receipt of the notice for the discovery or production of documents, forward the same or copies thereof to the authority in whose custody or possession the documents are kept, with a requisition for the production of the documents by such date as may be specified in such requisition: Provided that the inquiring authority may, for reasons to be recorded by it in writing, refuse to requisition such of the documents as are, in its opinion, not relevant to the case.

Rule 14(12)

THE RULE SAYS

(13) On receipt of the requisition referred to in sub-rule (12), every authority having the custody or possession of the requisitioned documents shall produce the same or issue a non-availability certificate before the Inquiring Authority within one month of the receipt of such requisition: Provided that if the authority having the custody or possession of the requisitioned documents is satisfied for reasons to be recorded by it in writing that the production of all or any of such documents would be against the public interest or security of the State, it shall inform the Inquiring Authority accordingly and the Inquiring Authority shall, on being so informed, communicate the information to the Government servant and withdraw the requisition made by it for the production or discovery of such documents.

Rule 14(13)

Step	Time limit	Who
Inquiring Authority sends requisition to the custodian	—	Inquiring Authority
Custodian produces the document **or** issues a non-availability certificate	Within **one month**	Custodian of the document
Claim of public interest / State security	Reasons in writing; IO informs the officer and withdraws the requisition	Custodian + Inquiring Authority

WATCH OUT
Public interest immunity is available, but it must be reasoned. A bare "not in public interest" note is not enough — and if the document is relied on without being shown to you, the inquiry is unfair (the S.K. Kapoor principle).

Rule 14(14) Recording the evidence

THE RULE SAYS

On the date fixed for the inquiry, the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the disciplinary authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross-examined by or on behalf of the Government servant. The Presenting Officer shall be entitled to re-examine the witnesses on any points on which they have been cross-examined, but not on any new matter, without the leave of the inquiring authority. The inquiring authority may also put such questions to the witnesses as it thinks fit.

Rule 14(14)

1 Examination-in-chief → 2 Cross-examination → 3 Re-examination → 4 Questions by IO

In simple words: the **Presenting Officer** leads the department's witnesses; you (or your Defence Assistant) **cross-examine** them; the PO may **re-examine** only on points that came up in cross-examination, and only with the leave of the Inquiring Authority on any new matter; and the Inquiring Authority may itself ask any question. Everything is recorded and signed.

Rule 14(15) New evidence — only to fill a lacuna, never a gap

THE RULE SAYS

If it shall appear necessary before the close of the case on behalf of the disciplinary authority, the inquiring authority may, in its discretion, allow the Presenting Officer to produce evidence not included in the list given to the Government servant or may itself call for new evidence or recall and re-examine any witness and in such case the Government servant shall be entitled to have, if he demands it, a copy of the list of further evidence proposed to be produced and an adjournment of the inquiry for three clear days before the production of such new evidence, exclusive of the day of adjournment and the day to which the inquiry is adjourned. The inquiring authority shall give the Government servant an opportunity of inspecting such documents before they are taken on the record. The inquiring authority may also allow the Government servant to produce new evidence, if it is of the opinion that the production of such evidence is necessary, in the interests of justice.

Rule 14(15)

THE NOTE

Note — New evidence shall not be permitted or called for or any witness shall not be recalled to fill up any gap in the evidence. Such evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally.

Note to Rule 14(15)

The department may
- Produce evidence not in the original list.
- Recall and re-examine a witness.
- Only to cure an **inherent lacuna** — not to fill a gap.
- The officer gets the new list + **3 clear days**.

The officer may also
- Produce new evidence.
- If the IO finds it necessary in the **interests of justice**.
- Inspect documents before they are taken on record.
- Ask for time to meet surprise evidence.

e

EXAMPLE
The PO forgets to prove the sanction order. That is a **gap** — the Note forbids new evidence to fill it. But if a witness's signed statement is illegible on one page, that is an **inherent defect** and correction is allowed.

Rule 14(16) to 14(19) Your defence and the closing

THE RULE SAYS
(16) When the case for the disciplinary authority is closed, the Government servant shall be required to state his defence, orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded and the Government servant shall be required to sign the record. In either case, a copy of the statement of defence shall be given to the Presenting Officer, if any, appointed.

Rule 14(16)

THE RULE SAYS
(17) The evidence on behalf of the Government servant shall then be produced. The Government servant may examine himself in his own behalf if he so prefers. The witnesses produced by the Government servant shall then be examined and shall be liable to cross-examination, re-examination and examination by the inquiring authority according to the provisions applicable to the witnesses for the disciplinary authority.

Rule 14(17)

THE RULE SAYS
(18) The inquiring authority may, after the Government servant closes his case, and shall, if the Government servant has not examined himself, generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the Government servant to explain any circumstances appearing in the evidence against him.

Rule 14(18)

THE RULE SAYS
(19) The inquiring authority may, after the completion of the production of evidence, hear the Presenting Officer, if any, appointed, and the Government servant, or permit them to file written briefs of their respective case, if they so desire.

Rule 14(19)

1. **Close of the department's case**
   The PO's evidence ends.
2. **Defence statement**
   Oral or written; recorded; signed; copy to the PO.
3. **Defence evidence**
   You may examine yourself and your witnesses.
4. **General questioning**
   The IO **must** question you if you did not examine yourself.
5. **Arguments / written briefs**
   Both sides are heard.

i

NOTE
Rule 14(18) is routinely skipped and routinely fatal. The Supreme Court has repeatedly held that failure to generally question the charged officer on the circumstances appearing against him vitiates the inquiry.

Rule 14(20) Ex parte inquiry

THE RULE SAYS

If the Government servant to whom a copy of the articles of charge has been delivered, does not submit the written statement of defence on or before the date specified for the purpose or does not appear in person before the inquiring authority or otherwise fails or refuses to comply with the provisions of this rule, the inquiring authority may hold the inquiry ex parte.

Rule 14(20)

WATCH OUT

Ex parte is a **last resort**, not a convenience. Before resorting to it the IO must be satisfied that notice was served, that the officer had a real opportunity and that there is a record of the default. An ex parte inquiry without proof of service is the single most common ground of quashing.

Rule 14(21) When the minor-penalty authority finds a major penalty is needed

THE RULE SAYS

(a) Where a disciplinary authority competent to impose any of the penalties specified in clauses (i) to (iv) of Rule 11 (but not competent to impose any of the penalties specified in clauses (v) to (ix) of Rule 11), has itself inquired into or caused to be inquired into the articles of any charge and that authority, having regard to its own findings or having regard to its decision on any of the findings of any inquiring authority appointed by it, is of the opinion that the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, that authority shall forward the records of the inquiry to such disciplinary authority as is competent to impose the last mentioned penalties.

Rule 14(21)(a)

THE RULE SAYS

(b) The disciplinary authority to which the records are so forwarded may act on the evidence on the record or may, if it is of the opinion that further examination of any of the witnesses is necessary in the interests of justice, recall the witness and examine, cross-examine and re-examine the witness and may impose on the Government servant such penalty as it may deem fit in accordance with these Rules.

Rule 14(21)(b)

REMEMBER

This is the bridge between Rule 13(2) (a minor-penalty authority may start a major case) and Rule 15 (the competent authority finishes it). The receiving authority **must still give the officer a copy of the report and 15 days** under Rule 15(2).

Rule 14(22) Change of Inquiring Authority

THE RULE SAYS

Whenever any inquiring authority, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein, and is succeeded by another inquiring authority which has, and which exercises, such jurisdiction, the inquiring authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself:
Provided that if the succeeding inquiring authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interests of justice, it may recall, examine, cross-examine and re-examine any such witnesses as hereinbefore provided.

Rule 14(22)

NOTE
A transfer of the IO does **not** restart the inquiry. The successor continues from the record — and may recall witnesses if justice requires it.

Rule 14(23) The inquiry report

THE RULE SAYS
(i) After the conclusion of the inquiry, a report shall be prepared and it shall contain — (a) the articles of charge and the statement of the imputations of misconduct or misbehaviour; (b) the defence of the Government servant in respect of each article of charge; (c) an assessment of the evidence in respect of each article of charge; (d) the findings on each article of charge and the reasons therefor.

Rule 14(23)(i)

THE EXPLANATION
Explanation — If in the opinion of the inquiring authority the proceedings of the inquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge: Provided that the findings on such article of charge shall not be recorded unless the Government servant has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

Explanation to Rule 14(23)(i)

THE RULE SAYS
(ii) The inquiring authority, where it is not itself the disciplinary authority, shall forward to the disciplinary authority the records of inquiry which shall include — (a) the report prepared by it under clause (i); (b) the written statement of defence, if any, submitted by the Government servant; (c) the oral and documentary evidence produced in the course of the inquiry; (d) written briefs, if any, filed by the Presenting Officer or the Government servant or both during the course of the inquiry; and (e) the orders, if any, made by the disciplinary authority and the inquiring authority in regard to the inquiry.

Rule 14(23)(ii)

The report must contain	Check
(a) Articles of charge + statement of imputations	Attached and reproduced
(b) The defence on **each** article	Not a summary — the actual defence
(c) Assessment of evidence on **each** article	Witness-by-witness, document-by-document
(d) Findings on each article **with reasons**	“Proved” / “Not proved” / “Partly proved” + why

REMEMBER
A finding without reasons is no finding. “Charge proved” alone will be set aside. Write one paragraph of reasoning per charge — it takes ten minutes and saves the case.

Rule 14(24) Time limit for the inquiry

THE RULE SAYS
(a) The Inquiring Authority should conclude the inquiry and submit his report within a period of six months from the date of receipt of order of his appointment as Inquiring Authority. (b) Where it is not possible to adhere to the time limit specified in clause (a), the Inquiring Authority may record the reasons and seek extension of time from the disciplinary authority in writing, who may allow an additional time not exceeding six months for completion of the inquiry, at a time. (c) The extension for a period not exceeding

Rule 14(24)

THE RULE SAYS (contd.)
six months at a time may be allowed for any good and sufficient reasons to be recorded in writing by the Disciplinary Authority or any other Authority authorised by the Disciplinary Authority on his behalf.

6	6	∞
months for the inquiry	months per extension	extensions but each must be reasoned

These are **directory**, not mandatory, time-limits: a late report does not by itself invalidate the inquiry. But unreasonable delay is a ground for reinstatement of a suspended officer, and it is the first thing an appellate authority asks about.

Rule 15 Action on the inquiry report

THE RULE SAYS
(1) The disciplinary authority, if it is not itself the inquiring authority may, for reasons to be recorded by it in writing, remit the case to the inquiring authority for further inquiry and report and the inquiring authority shall thereupon proceed to hold the further inquiry according to the provisions of Rule 14, as far as may be.

Rule 15(1)

THE RULE SAYS
(2) The disciplinary authority shall forward or cause to be forwarded a copy of the report of the inquiry, if any, held by the disciplinary authority or where the disciplinary authority is not the inquiring authority, a copy of the report of the inquiring authority together with its own tentative reasons for disagreement, if any, with the findings of inquiring authority on any article of charge to the Government servant who shall be required to submit, if he so desires, his written representation or submission to the disciplinary authority within fifteen days, irrespective of whether the report is favourable or not to the Government servant.

Rule 15(2)

THE RULE SAYS
(3)(a) In every case where it is necessary to consult the Commission, the Disciplinary Authority shall forward or cause to be forwarded to the Commission for its advice — (i) a copy of the report of the Inquiring Authority together with its own tentative reasons for disagreement, if any, with the findings of Inquiring Authority on any article of charge; and (ii) comments of Disciplinary Authority on the representation of the Government servant on the Inquiry report and disagreement note, if any, and all the case records of the inquiry proceedings.

Rule 15(3)(a)

THE RULE SAYS
(b) The Disciplinary Authority shall forward or cause to be forwarded a copy of the advice of the Commission received under clause (a) to the Government servant, who shall be required to submit, if he so desires, his written representation or submission to the Disciplinary Authority within fifteen days, on the advice of the Commission.

Rule 15(3)(b)

THE RULE SAYS
(4) The Disciplinary Authority shall consider the representation under sub-rule (2) and/or clause (b) of sub-rule (3), if any, submitted by the Government servant and record its findings before proceeding further in the matter as specified in sub-rules (5) and (6).

Rule 15(4)

THE RULE SAYS

(5) If the Disciplinary Authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on the Government servant, it shall, notwithstanding anything contained in Rule 16, make an order imposing such penalty.

Rule 15(5)

THE RULE SAYS

(6) If the Disciplinary Authority having regard to its findings on all or any of the articles of charge and on the basis of the evidence adduced during the inquiry is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall make an order imposing such penalty and it shall not be necessary to give the Government servant any opportunity of making representation on the penalty proposed to be imposed.

Rule 15(6)

1 **Report** → 2 **Copy to officer** → 3 **15 days reply** → 4 **UPSC (if needed)** → 5 **15 days on advice** → 6 **Penalty order**

What Rule 15(2) guarantees

- A copy of the report — **even if favourable**.
- The DA's tentative disagreement, if any.
- 15 days to represent.
- The DA must record findings on your representation (15(4)).

What Rule 15(6) means

- **No second show-cause** on the proposed penalty.
- As long as the report and disagreement note were given.
- The penalty order must still be a **speaking order**.
- UPSC advice, if any, must be supplied first.

WATCH OUT

The old “second show-cause notice” under Article 311(2) was abolished in 1976. Asking for a proposed penalty opinion is no longer a right — but the **report + disagreement note \+ 15 days** under Rule 15(2) is a mandatory right, and omitting it is fatal.

REMEMBER

UPSC consultation: required where the Rules or the Schedule so provide (typically Group 'A' and some Group 'B' posts). The officer must be given the Commission's advice and 15 days to comment on it — a requirement added by the 2014 amendment (and a direct result of **S.K. Kapoor**).

Rule 16 Procedure for minor penalties

THE RULE SAYS

(1) Subject to the provisions of sub-rule (5) of Rule 15, no order imposing on a Government servant any of the penalties specified in clauses (i) to (iv) of Rule 11 shall be made except after — (a) informing the Government servant in writing of the proposal to take action against him and of the imputations of misconduct or misbehaviour on which it is proposed to be taken, and giving him reasonable opportunity of making such representation as he may wish to make against the proposal; (b) holding an inquiry in the manner laid down in sub-rules (3) to (24) of Rule 14, in every case in which the disciplinary authority is of the opinion that such inquiry is necessary; (c) taking the representation, if any, submitted by the Government servant under clause (a) and the record of inquiry, if any, held under clause (b) into consideration; (d) consulting the Commission where such consultation is necessary. The Disciplinary Authority shall forward or cause to be forwarded a copy of the advice of the Commission to the Government servant, who shall be required to submit, if he so desires, his written representation or submission on the advice of the Commission, to the Disciplinary Authority within fifteen days; and (e) recording a finding on each imputation of misconduct or misbehaviour.

Rule 16(1)

THE RULE SAYS

(1-A) Notwithstanding anything contained in clause (b) of sub-rule (1), if in a case it is proposed after considering the representation, if any, made by the Government servant under clause (a) of that sub-rule, to withhold increments of pay and such withholding of increments is likely to affect adversely the amount of pension payable to the Government servant or to withhold increments of pay for a period exceeding three years or to withhold increments of pay with cumulative effect for any period, an inquiry shall be held in the manner laid down in sub-rules (3) to (24) of Rule 14, before making any order imposing on the Government servant any such penalty.

Rule 16(1-A)

THE RULE SAYS

(2) The record of the proceedings in such cases shall include — (i) a copy of the intimation to the Government servant of the proposal to take action against him; (ii) a copy of the statement of imputations of misconduct or misbehaviour delivered to him; (iii) his representation, if any; (iv) the evidence produced during the inquiry; (v) the advice of the Commission, if any; (vi) representation, if any, of the Government servant on the advice of the Commission; (vii) the findings on each imputation of misconduct or misbehaviour; and (viii) the orders on the case together with the reasons therefor.

Rule 16(2)

1 Proposal → **2 Imputations** → **3 Representation** → **4 Inquiry if needed** → **5 Finding + order**

Penalty proposed	Inquiry mandatory?
Censure	No — written proposal and a chance to represent is enough
Withholding of promotion / recovery / reduction under (iii-a)	No, unless the DA considers an inquiry necessary
Withholding of increments — ordinary	No
Withholding of increments that is likely to affect **pension** adversely	**Yes** — Rule 16(1-A)
Withholding of increments for **more than 3 years**	**Yes** — Rule 16(1-A)
Withholding of increments **with cumulative effect**	**Yes** — Rule 16(1-A)

Rule 17 Communication of the order

THE RULE SAYS

Orders made by the disciplinary authority shall be communicated to the Government servant who shall also be supplied with a copy of its finding on each article of charge, or where the disciplinary authority is not the inquiring authority, a statement of the findings of the disciplinary authority together with brief reasons for its disagreement, if any, with the findings of the inquiring authority and also a copy of the advice, if any, given by the Commission, and where the disciplinary authority has not accepted the advice of the Commission, a brief statement of the reasons for such non-acceptance.

Rule 17

Must be given with the order	Why
Findings on each article of charge	So you know exactly what was held against you
DA's disagreement with the IO, with brief reasons	So you can challenge the reasoning
Copy of the UPSC advice	So you can see what the Commission said
Reasons for **not** accepting that advice	So the order shows independent application of mind

Rule 18 Common proceedings

THE RULE SAYS

(1) Where two or more Government servants are concerned in any case, the President or any other authority competent to impose the penalty of dismissal from service on all such Government servants may make an order directing that disciplinary action against all of them may be taken in a common proceeding.

Rule 18(1)

THE NOTE

Note — If the authorities competent to impose the penalty of dismissal on such Government servants are different, an order for taking disciplinary action in a common proceeding may be made by the highest of such authorities with the consent of the others.

Note to Rule 18(1)

THE RULE SAYS

(2) Subject to the provisions of sub-rule (4) of Rule 12, any such order shall specify — (i) the authority which may function as the disciplinary authority for the purpose of such common proceeding; (ii) the penalties specified in Rule 11 which such disciplinary authority shall be competent to impose; (iii) whether the procedure laid down in Rule 14 and Rule 15 or Rule 16 shall be followed in the proceeding.

Rule 18(2)

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EXAMPLE

A cashier and a clerk are both involved in a ₹5 lakh shortfall. A common proceeding is ordered. The order must say **who** will act as DA, **which penalties** he may impose on both, and whether the Rule 14 or Rule 16 procedure will apply — because the two officers may be in different Groups with different penalty powers.

Rule 19 Special procedure — conviction, impracticability, State security

THE RULE SAYS

Notwithstanding anything contained in Rule 14 to Rule 18 — (i) where any penalty is imposed on a Government servant on the ground of conduct which has led to his conviction on a criminal charge, or (ii) where the disciplinary authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these Rules, or (iii) where the President is satisfied that in the interest of the security of the State, it is not expedient to hold any inquiry in the manner provided in these Rules, the disciplinary authority may consider the circumstances of the case and make such orders thereon as it deems fit.

Rule 19

THE PROVISO

Provided that the Government servant may be given an opportunity of making representation on the penalty proposed to be imposed before any order is made in a case under clause (i).

First proviso to Rule 19

THE PROVISO

Provided further that the Commission shall be consulted, where such consultation is necessary, and the Government servant has been given an opportunity of representing against the advice of the Commission, within the time limit specified in clause (b) of sub-rule (3) of Rule 15, before any orders are made in any case under this rule.

Second proviso to Rule 19

Ground	Who must be satisfied	Safeguard
(i) Conviction on a criminal charge	The disciplinary authority	Opportunity to represent on the proposed penalty
(ii) Not reasonably practicable to hold an inquiry	The disciplinary authority — **reasons in writing**	Reasons must be recorded and must be justiciable
(iii) Security of the State	**The President**	Highest satisfaction level in the Rules

WATCH OUT

Rule 19 is the **emergency exit** and courts read it narrowly. "Not reasonably practicable" cannot mean "inconvenient" or "witnesses are not co-operating". The reasons must be recorded **in the order itself**, not supplied later in an affidavit (the Tulsiram Patel principle).

Rule 20 Officers lent to a State Government or other authority

THE RULE SAYS

(1) Where the services of a Government servant are lent by one department to another department or to a State Government or an authority subordinate thereto or to a local or other authority (hereinafter in this rule referred to as "the borrowing authority"), the borrowing authority shall have the powers of the appointing authority for the purpose of placing such Government servant under suspension and of the disciplinary authority for the purpose of conducting a disciplinary proceeding against him.

Rule 20(1)

THE PROVISO

Provided that the borrowing authority shall forthwith inform the authority which lent the services of the Government servant (hereinafter in this rule referred to as "the lending authority") of the circumstances leading to the order of suspension of such Government servant or the commencement of the disciplinary proceeding, as the case may be.

Proviso to Rule 20(1)

THE RULE SAYS

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant — (i) if the borrowing authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on the Government servant, it may, after consultation with the lending authority, make such orders on the case as it deems necessary: Provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority; (ii) if the borrowing authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall replace his services at the disposal of the lending authority and transmit to it the proceedings of the inquiry and thereupon the lending authority may, if it is the disciplinary authority, pass such order thereon as it may deem necessary, or, if it is not the disciplinary authority, submit the case to the disciplinary authority which shall pass such orders on the case as it may deem necessary.

Rule 20(2)

Stage	Borrowing authority may	Lending authority's role
Suspension	Suspend — it has the powers of the appointing authority	Must be informed forthwith
Minor penalty	Impose after **consultation**; if opinions differ, the officer goes back	Consulted; may disagree, then the officer is returned
Major penalty	Cannot impose — replace the officer and send the inquiry record	Decides the penalty (or forwards to the competent DA)

THE EXPLANATION

Explanation — The disciplinary authority may make an order under this clause on the record of the inquiry transmitted to it by the borrowing authority or after holding such further inquiry as it may deem necessary, as far as may be, in accordance with Rule 14.

Explanation to Rule 20(2)

Rule 21 Officers borrowed from a State Government or other authority

THE RULE SAYS

(1) Where an order of suspension is made or a disciplinary proceeding is conducted against a Government servant whose services have been borrowed by one department from another department or from a State Government or an authority subordinate thereto or a local or other authority, the authority lending his services (hereinafter in this rule referred to as "the lending authority") shall forthwith be informed of the circumstances leading to the order of the suspension of the Government servant or of the commencement of the disciplinary proceeding, as the case may be.

Rule 21(1)

THE RULE SAYS

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant, if the disciplinary authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on him, it may, subject to the provisions of sub-rule (3) of Rule 15 and except in regard to a Government servant serving in the Intelligence Bureau up to the rank of Assistant Central Intelligence Officer, after consultation with the lending authority, pass such orders on the case as it may deem necessary — (i) provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority; (ii) if the disciplinary authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall replace the services of such Government servant at the disposal of the lending authority and transmit to it the proceedings of the inquiry for such action, as it may deem necessary.

Rule 21(2)

Rule 20 vs Rule 21

Rule 20 = **we lend** our officer to someone else. Rule 21 = **we borrow** someone else's officer.

Common thread

The **lending authority** always gets the officer back for a major penalty, and is always informed at once.

Special carve-out

Rule 21(2) exempts Intelligence Bureau staff up to the rank of Assistant Central Intelligence Officer from the consultation requirement.

Difference of opinion

The officer's services are replaced with the lending authority — the borrower does not fight it out.

Part VI in one line: charges in writing, a fair hearing, a reasoned report, a copy to the officer, 15 days to reply — then a speaking order.

PART VII — APPEALS

RULES 22 TO 28

No appeal · appealable orders · appellate authority · 45 days · form · consideration · implementation

An appeal is not a re-trial. It is a **structured review** on three questions: was the procedure followed, was the finding supported by evidence, and is the penalty proportionate? Rule 27 gives the appellate authority unusually wide powers — including enhancement.



45 days. In writing. In your own name. Through the authority that passed the order. That is the whole of Rules 25 and 26.

Rule 22 Orders against which no appeal lies

THE RULE SAYS

Notwithstanding anything contained in this Part, no appeal shall lie against — (i) any order made by the President; (ii) any order of an interlocutory nature or of the nature of a step-in-aid of the final disposal of a disciplinary proceeding, other than an order of suspension; (iii) any order passed by an inquiring authority in the course of an inquiry under Rule 14.

Rule 22

Order	Appeal?	What you can do instead
Order of the President	No	Judicial review; Rule 29-A review by the President himself
Interlocutory order — e.g. refusal of documents, refusal of a Defence Assistant	No — except suspension orders	Represent to the IO; raise it in the appeal against the final order
Any order of the Inquiring Authority during the inquiry	No	Same as above — it becomes a ground of appeal later
Order of suspension	**Yes**	Rule 23(i) — an express exception

REMEMBER

Practical point: an interlocutory order is not appealable, but a review petition against the appointment of the Inquiry Officer can be filed. DoPT's instructions say the inquiry should be stayed once such a review petition is filed.

Rule 23 Orders against which an appeal DOES lie

THE RULE SAYS

Subject to the provisions of Rule 22, a Government servant may prefer an appeal against all or any of the following orders, namely: — (i) an order of suspension made or deemed to have been made under Rule 10; (ii) an order imposing any of the penalties specified in Rule 11, whether made by the disciplinary authority or by any appellate or revising authority; (iii) an order enhancing any penalty imposed under Rule 11; (iv) an order which — (a) denies or varies to his disadvantage his pay, allowances, pension or other conditions of service as regulated by rules or by agreement; or (b) interprets to his disadvantage the provisions of any such rule or agreement;

Rule 23 (part)

THE RULE SAYS

(v) an order — (a) stopping him at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar; (b) reverting him while officiating in a higher Service, grade or post, to a lower Service, grade or post, otherwise than as a penalty; (c) reducing or withholding the pension or denying the maximum pension admissible to him under the rules; (d) determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof; (e) determining his pay and allowances — (i) for the period of suspension, or (ii) for the period from the date of his dismissal, removal or compulsory retirement from service, or from the date of his reduction to a lower Service, grade, post, time-scale or stage in a time-scale of pay, to the date of his reinstatement or restoration; or (f) determining whether or not the period from the date of his suspension or from the date of his dismissal, removal, compulsory retirement or reduction to a lower Service, grade, post, time-scale of pay to the date of his reinstatement or restoration shall be treated as a period spent on duty for any purpose.

Rule 23 (contd.)

THE EXPLANATION

Explanation — In this rule — (i) the expression ‘Government servant’ includes a person who has ceased to be in Government service; (ii) the expression ‘pension’ includes additional pension, gratuity and any other retirement benefits.

Explanation to Rule 23

Appealable order	Clause	Everyday example
Suspension	23(i)	Order placing you under suspension or deemed suspension
Any Rule 11 penalty	23(ii)	Censure, recovery, withholding of increment, dismissal
Enhancement of a penalty	23(iii)	Censure upgraded to stoppage of two increments by the appellate authority
Pay / pension / conditions of service varied to your disadvantage	23(iv)	Refixation of pay that reduces your basic pay
Stoppage at the efficiency bar	23(v)(a)	Withholding of the annual increment at the EB
Reversion while officiating, not as a penalty	23(v)(b)	Ad hoc promotion to Group A withdrawn
Pension reduced or maximum pension denied	23(v)(c)	Pro-rata reduction of pension
Subsistence allowance determination	23(v)(d)	Reduction to 25% after three months
Pay for the suspension or reinstatement period	23(v)(e)	Pay fixed at 50% for the suspension period
Whether a period counts as duty	23(v)(f)	“Not treated as duty” endorsement on the reinstatement order

NOTE

The Explanation widens the rule twice: it covers a person who has **left service** (for pension matters) and it treats **gratuity and other retiral benefits** as pension.

Rule 24 Who is the appellate authority

THE RULE SAYS

(1) A Government servant, including a person who has ceased to be in Government service, may prefer an appeal against all or any of the orders specified in Rule 23 to the authority specified in this behalf either in the Schedule or by a general or special order of the President or, where no such authority is specified — (i) where such Government servant is or was a member of a Central Civil Service, Group 'A' or Group 'B' or

Rule 24(1)

THE RULE SAYS (contd.)

holder of a Central Civil Post, Group 'A' or Group 'B' — (a) to the appointing authority, where the order appealed against is made by an authority subordinate to it; or (b) to the President where such order is made by any other authority; (ii) where such Government servant is or was a member of a Central Civil Service, Group 'C' or Group 'D', or holder of a Central Civil Post, Group 'C' or Group 'D', to the authority to which the authority making the order appealed against is immediately subordinate.

THE RULE SAYS

(2) Notwithstanding anything contained in sub-rule (1) — (i) an appeal against an order in a common proceeding held under Rule 18 shall lie to the authority to which the authority functioning as the disciplinary authority for the purpose of that proceeding is immediately subordinate: Provided that where such authority is subordinate to the President in respect of a Government servant for whom the President is the appellate authority in terms of sub-clause (b) of clause (i) of sub-rule (1), the appeal shall lie to the President. (ii) where the person who made the order appealed against becomes, by virtue of his subsequent appointment or otherwise, the appellate authority in respect of such order, an appeal against such order shall lie to the authority to which such person is immediately subordinate.

Rule 24(2)

THE RULE SAYS

(3) A Government servant may prefer an appeal against an order imposing any of the penalties specified in Rule 11 to the President, where no such appeal lies to him under sub-rule (1) or sub-rule (2), if such penalty is imposed by any authority other than the President, on such Government servant in respect of his activities connected with his work as an office-bearer of an association, federation or union, participating in the Joint Consultation and Compulsory Arbitration Scheme.

Rule 24(3)

Your Group	Who made the order	Your appellate authority
Group 'A' / 'B'	An authority subordinate to the appointing authority	The appointing authority
Group 'A' / 'B'	Any other authority	**The President**
Group 'C' / 'D'	Any authority	The authority to which the maker of the order is **immediately subordinate**
Any group — common proceeding	The designated common DA	The authority above the common DA (President in some cases)
Any group — office-bearer of a recognised union, no appeal otherwise	Any authority other than the President	**The President** under Rule 24(3)

WATCH OUT

Rule 24(2)(ii) is subtle and useful. If the officer who punished you is later promoted and becomes the appellate authority, the appeal **jumps above him** to his own superior. That prevents a person from sitting in appeal on his own order.

Rule 25 The 45-day limitation

THE RULE SAYS

No appeal preferred under this Part shall be entertained unless such appeal is preferred within a period of forty-five days from the date on which a copy of the order appealed against is delivered to the appellant: Provided that the appellate authority may entertain the appeal after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

Rule 25

45	Yes	Once
days from delivery of the order	condonation on sufficient cause	only no second appeal

REMEMBER
The clock runs from **delivery of the order**, not from the date on the order. Keep the date of receipt (acknowledgement, speed post proof, e-office receipt) — it decides the limitation.

Rule 26 Form and contents of the appeal

THE RULE SAYS

(1) Every person preferring an appeal shall do so separately and in his own name. (2) The appeal shall be presented to the authority to whom the appeal lies, a copy being forwarded by the appellant to the authority which made the order appealed against. It shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, and shall be complete in itself. (3) The authority which made the order appealed against shall, on receipt of a copy of the appeal, forward the same with its comments thereon together with the relevant records to the appellate authority without any avoidable delay, and without waiting for any direction from the appellate authority.

Rule 26

The appeal must be

- Separate — one appeal per person.
- In the appellant's own name.
- Sent to the appellate authority.
- Copy to the authority that passed the order.

It must not be

- A joint or collective appeal.
- Filed by a union on your behalf.
- Disrespectful or abusive.
- Incomplete — no “will follow” supplements.

WATCH OUT
Do not use intemperate language. DoPT's instructions show that appeals containing disrespectful language are returned — and the loss of 45 days may be fatal.

Rule 27 Consideration of the appeal

THE RULE SAYS

(1) In the case of an appeal against an order of suspension, the appellate authority shall consider whether in the light of the provisions of Rule 10 and having regard to the circumstances of the case, the order of suspension is justified or not and confirm or revoke the order accordingly.

Rule 27(1)

THE RULE SAYS

(2) In the case of an appeal against an order imposing any of the penalties specified in Rule 11 or enhancing any penalty imposed under the said rules, the appellate authority shall consider — (a) whether the procedure laid down in these rules has been complied with and if not, whether such non-compliance has resulted in the violation of any provisions of the Constitution of India or in the failure of justice; (b) whether the findings of the disciplinary authority are warranted by the evidence on the record; and (c) whether the penalty or the enhanced penalty imposed is adequate, inadequate or severe; and pass orders — (i) confirming, enhancing, reducing, or setting aside the penalty; or (ii) remitting the case to the authority which imposed or enhanced the penalty or to any other authority with such direction as it may deem fit in the circumstances of the case.

Rule 27(2)

1 Procedure OK? → 2 Evidence supports? → 3 Penalty proportionate? → 4 Confirm / reduce / enhance

THE PROVISO

Provided that — (i) the Commission shall be consulted in all cases where such consultation is necessary, and the Government servant has been given an opportunity of representing against the advice of the Commission within the time limit specified in clause (b) of sub-rule (3) of Rule 15; (ii) if such enhanced penalty which the appellate authority proposes to impose is one of the penalties specified in clauses (v) to (ix) of Rule 11 and an inquiry under Rule 14 has not already been held in the case, the appellate authority shall, subject to the provisions of Rule 19, itself hold such inquiry or direct that such inquiry be held in accordance with the provisions of Rule 14 and thereafter, on a consideration of the proceedings of such inquiry, make such orders as it may deem fit; (iii) if the enhanced penalty which the appellate authority proposes to impose is one of the penalties specified in the clauses (v) to (ix) of Rule 11 and an inquiry under Rule 14 has been held in the case, the appellate authority shall make such orders as it may deem fit after the appellant has been given a reasonable opportunity of making a representation against the proposed penalty; and (iv) no order imposing an enhanced penalty shall be made in any other case unless the appellant has been given a reasonable opportunity, as far as may be, in accordance with the provisions of Rule 16, of making a representation against such enhanced penalty.

Provisos to Rule 27(2)

THE RULE SAYS

(3) In an appeal against any other order specified in Rule 23, the appellate authority shall consider all the circumstances of the case and make such orders as it may deem just and equitable.

Rule 27(3)

The appellate authority may	When
Confirm the penalty	Procedure and findings are sound and the penalty is adequate
Reduce the penalty	The penalty is severe or disproportionate
Enhance the penalty	The penalty is inadequate — but only after a fresh notice and opportunity (provisos (ii)-(iv))
Set aside the penalty	Procedure breached, or findings unsupported by evidence
Remit the case	Further inquiry or reconsideration is needed

! **WATCH OUT**

Enhancement has a price. To enhance a minor penalty to a major one without an inquiry, the appellate authority must either hold a Rule 14 inquiry itself or direct one. And in every case of enhancement, the appellant gets a reasonable opportunity to represent against the proposed enhanced penalty.

i **NOTE**

DoPT instructions require appeals to be disposed of **within three months** (extendable in exceptional cases with reasons). Personal hearing is at the discretion of the appellate authority.

Rule 28 Implementation of the orders in appeal

THE RULE SAYS

The authority which made the order appealed against shall give effect to the orders passed by the appellate authority.

Rule 28

A short rule with a long bite. The appellate order is **binding on the original authority** — it cannot sit in judgment over it.

REMEMBER
If the appellate order is not implemented, the remedy is a **contempt-style representation** to the appellate authority, and ultimately a writ petition for implementation of the appellate order.

Nine out of ten successful appeals rest on one of five grounds. Read the order, then tick the ones that apply:

1. **Ground 1 · Competence**
   The order was passed by an authority not competent under Rule 12 or the Schedule (Article 311(1)).
2. **Ground 2 · Procedure**
   Charges vague, no inquiry, no inspection, no defence assistant, no general questioning (Rule 14).
3. **Ground 3 · Evidence**
   Finding against the weight of evidence, or based on material never put to the officer (Rule 14(18), 14(23)).
4. **Ground 4 · Report and advice**
   Inquiry report or UPSC advice not supplied, no 15 days to represent (Rules 15(2), 15(3)(b)).
5. **Ground 5 · Proportionality**
   Penalty disproportionate to the charge, or a Rule 11 clause not applicable to the post.

Write the prayer before the grounds. Decide what you actually want — set aside, remit for fresh inquiry, reduction of penalty, or reinstatement — and then choose only the grounds that lead to it. An appeal that asks for everything is usually granted nothing.

EXAMPLE
An order of **dismissal** is signed the same morning the inquiry report reaches the Disciplinary Authority. The appellant shows that the report was never supplied, so there was no 15-day opportunity under Rule 15(2). The appellate authority **remits** the case under Rule 27(2)(d) for a fresh order after supplying the report — the finding of guilt itself survives, but the penalty does not.

Part VII in one line: 45 days, own name, complete in itself — and Rule 27 lets the appellate authority confirm, reduce, enhance, set aside or remit.



BABU-JI SAYS

Most good appeals are short. Ten pages of anger lose; two pages of dates, rule numbers and documents win.

STRUCTURE THAT WORKS

1. Facts 2. Grounds (rule by rule) 3. Documents 4. Prayer.

NEVER WRITE

"The officer is biased and dishonest" — say what was done, when, and which rule it broke.

END OF CHAPTER · WHAT YOU JUST READ

- Rule 22 Orders against which no appeal lies
- Rule 23 Orders against which an appeal DOES lie
- Rule 24 Who is the appellate authority
- Rule 25 The 45-day limitation
- Rule 26 Form and contents of the appeal
- Rule 27 Consideration of the appeal
- Rule 28 Implementation of the orders in appeal

Almost there. Revision, review, and six short rules about serving notices.

COMING UP NEXT: Part VIII — Revision & Review

PART VIII — REVISION & REVIEW

RULES 29 AND 29-A

Appeal is a right. **Revision** is a supervisory power — someone higher up calls for the records on their own motion. **Review** is narrower still: it needs new material that was not available when the order was passed.



Appeal = you ask. Revision = the boss looks. Review = new evidence appears. Three different doors; do not confuse the keys.

Rule 29 — Revision — who may revise, and how

THE RULE SAYS

(1) Notwithstanding anything contained in these rules — (i) the President; or (ii) the Comptroller and Auditor-General, in the case of a Government servant serving in the Indian Audit and Accounts Department; or (iii) the Member (Personnel) Postal Services Board in the case of a Government servant serving in or under the Postal Services Board and Adviser (Human Resources Development), Department of Telecommunications in the case of a Government servant serving in or under the Telecommunications Board; or (iv) the Head of a Department directly under the Central Government, in the case of a Government servant serving in a department or office (not being the Secretariat or the Posts and Telegraphs Board), under the control of such Head of a Department; or (v) the appellate authority, within six months of the date of the order proposed to be revised; or (vi) any other authority specified in this behalf by the President by a general or special order, and within such time as may be prescribed in such general or special order; may at any time, either on his or its own motion or otherwise call for the records of any inquiry and revise any order made under these rules or under the rules repealed by Rule 34 from which an appeal is allowed, but from which no appeal has been preferred or from which no appeal is allowed, after consultation with the Commission where such consultation is necessary.

Rule 29(1)

THE RULE SAYS

(1) [continued] and may — (a) confirm, modify or set aside the order; or (b) confirm, reduce, enhance or set aside the penalty imposed by the order, or impose any penalty where no penalty has been imposed; or (c) remit the case to the authority which made the order or to any other authority directing such authority to make such further enquiry as it may consider proper in the circumstances of the case; or (d) pass such other orders as it may deem fit.

Rule 29(1) — powers

THE PROVISO

Provided that no order imposing or enhancing any penalty shall be made by any revising authority unless the Government servant concerned has been given a reasonable opportunity of making a representation against the penalty proposed and where it is proposed to impose any of the penalties specified in clauses (v) to (ix) of Rule 11 or to enhance the penalty imposed by the order sought to be revised to any of the penalties specified in those clauses, and if an inquiry under Rule 14 has not already been held in the case, no such penalty shall be imposed except after an inquiry in the manner laid down in Rule 14 subject to the provisions of Rule 19, and except after consultation with the Commission where such consultation is necessary and the Government servant has been given an opportunity of representing against the advice of the Commission.

First proviso to Rule 29(1)

THE PROVISO

Provided further that no power of revision shall be exercised by the Comptroller and Auditor-General, Member (Personnel), Postal Services Board, Adviser (Human Resources Department), Department of Telecommunications or the Head of Department, as the case may be, unless — (i) the authority which made the order in appeal, or (ii) the authority to which an appeal would lie, where no appeal has been preferred, is subordinate to him.

Second proviso to Rule 29(1)

THE RULE SAYS

(2) No proceeding for revision shall be commenced until after — (i) the expiry of the period of limitation for an appeal, or (ii) the disposal of the appeal, where any such appeal has been preferred.

Rule 29(2)

THE RULE SAYS

(3) An application for revision shall be dealt with in the same manner as if it were an appeal under these rules.

Rule 29(3)

Who	Over whom	Time limit
The President	Any Government servant	Any time
CAG	IA&AD staff — and the authority in appeal must be subordinate to him	Any time
Member (Personnel), Postal Services Board / Adviser (HRD), DoT	Postal / Telecom staff, subject to subordination	Any time
Head of Department	Staff under him (not Secretariat / P&T Board)	Any time
Appellate authority	Orders it could have heard in appeal	**Within six months** of the order
Any other authority specified by the President	As specified	As specified in the order

WATCH OUT

Revision cannot be used to bypass appeal. Rule 29(2) says revision cannot begin until the appeal period has expired or the appeal has been decided. And a revision petition is dealt with like an appeal (Rule 29(3)) — so the same discipline of a written, complete, respectful submission applies.

NOTE

Revision is **not a right**. The authority may decline to call for the records. But the President's power under Rule 29(1)(i) is virtually unlimited and is the last administrative remedy short of Rule 29-A review and judicial review.

Rule 29-A Review — only on new material

THE RULE SAYS

The President may, at any time, either on his own motion or otherwise review any order passed under these rules, when any new material or evidence which could not be produced or was not available at the time of passing the order under review and which has the effect of changing the nature of the case, has come, or has been brought, to his notice.

Rule 29-A

THE PROVISO

Provided that no order imposing or enhancing any penalty shall be made by the President unless the Government servant concerned has been given a reasonable opportunity of making a representation against the penalty proposed or where it is proposed to impose any of the major penalties specified in Rule 11 or to enhance the minor penalty imposed by the order sought to be reviewed to any of the major penalties and if an inquiry under Rule 14 has not already been held in the case, no such penalty shall be imposed except after inquiring in the manner laid down in Rule 14, subject to the provisions of Rule 19, and except after consultation with the Commission where such consultation is necessary and the Government servant has been given an opportunity of representing against the advice of the Commission.

Proviso to Rule 29-A

Review is available when

- **New material** comes to notice.
- That material could **not** be produced earlier.
- It was **not available** at the time of the order.
- It **changes the nature** of the case.
- Only the **President** may review.

Review is not

- A second appeal.
- A chance to re-argue old evidence.
- Available to any other authority.
- A substitute for a writ petition.
- A way to reopen a closed case on the same facts.

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EXAMPLE

After a dismissal order, a handwriting expert's report shows that the disputed signature was forged. That report was not available earlier and changes the nature of the case — the President may review the order under Rule 29-A.

Part VIII in one line: revision is a supervisory power, review needs new material — and only the President may review.



BABU-JI SAYS

Between the appeal and the writ petition there is one more administrative door: a revision petition to the President under Rule 29(1)(i).

REVISION	REVIEW
Any time — the President; six months for an appellate authority.	New material only — Rule 29-A.

END OF CHAPTER · WHAT YOU JUST READ

- Rule 29 Revision — who may revise, and how
- Rule 29-A Review — only on new material

Penalties, appeals and revision are done. The back of the book turns it all into posters and questions.

COMING UP NEXT: Part IX — Miscellaneous

PART IX — MISCELLANEOUS

RULES 30 TO 35

Six short rules that decide whether a notice was validly served, whether a late reply can still be taken on record, and what happens to cases pending when the 1965 Rules came into force.



Rule 30 looks boring — until an ex parte order is quashed because the notice was never served. Service of notice is the foundation of every case.

Rule 30 Service of orders, notices and other process

THE RULE SAYS

Every order, notice and other process made or issued under these rules shall be served in person on the Government servant concerned or communicated to him by registered post.

Rule 30

Mode	What counts as good service
In person	Handed over to the employee against his signature — the safest mode
Registered post	Sent to the address in the service record; the acknowledgement is preserved
Speed post / courier (departmental practice)	Accepted where the departmental instructions permit, with proof of delivery
Email / e-office (departmental practice)	Accepted where the e-office system records receipt
Refusal to accept	Recorded before witnesses; then treated as served — the file must show the refusal

! **WATCH OUT**
Keep the **proof of service** on the file for every notice — charge sheet, notice of inquiry, notice of hearing, inquiry report, penalty order. Without it, an ex parte finding is almost always set aside.

Rule 31 Power to relax time-limits and condone delay

THE RULE SAYS

Save as otherwise expressly provided in these rules, the authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these rules for anything required to be done under these rules or condone any delay.

Rule 31

This is the **safety valve**. Almost every time-limit in the Rules can be extended by the competent authority — except where the Rules expressly forbid it. The most important such express bar is the **45-day absolute ceiling** for the written statement of defence in the proviso to Rule 14(4)(b).

e **EXAMPLE**
A charged officer's defence reply arrives on day 47. Rule 31 cannot save it, because the proviso to Rule 14(4)(b) says “under no circumstances” beyond 45 days. But if the Inquiring Authority's report is late, Rule 31 can extend the Rule 14(24) timeline with recorded reasons.

Rule 32 Omitted — supply of the Commission's advice

Rule 32 originally read **"Supply of copy of Commission's advice"** — it required a copy of the UPSC's advice to be given to the Government servant. It was **omitted** by the Central Civil Services (Classification, Control and Appeal) (**Second Amendment**) Rules, **2014**, notified on **31 October 2014**, because the same safeguard was written into the operative rules themselves.

After the 2014 amendment, the right lives in	Wording
Rule 15(3)(b)	A copy of the UPSC's advice must be forwarded to the officer, who may represent within **15 days**
Rule 16(1)(d)	The same right is repeated for **minor penalty** cases where consultation is necessary
Rule 19 (second proviso)	Applies to special-procedure cases (conviction, impracticability, State security)
Rule 27(2), proviso (i)	Applies to appeals where the Commission must be consulted
Rule 29 and Rule 29-A	Applies to revision and review before a penalty is imposed or enhanced

WATCH OUT
So Rule 32 is not "missing" — it was **absorbed**. If you are drafting an appeal, cite Rule 15(3)(b) or Rule 27(2) proviso (i), not Rule 32.

Rule 33 Transitory provisions

THE RULE SAYS

On and from the commencement of these rules, and until the publication of the Schedules under these rules, the Schedules to the Central Civil Services (Classification, Control and Appeal) Rules, 1957, and the Civilians in Defence Services (Classification, Control and Appeal) Rules, 1952, as amended from time to time, shall be deemed to be the Schedules relating to the respective categories of Government servants to whom they are, immediately before the commencement of these rules, applicable and such Schedules shall be deemed to be the Schedules referred to in the corresponding rules of these rules.

Rule 33

NOTE
This is a **1965 bridge provision**. It kept the old Schedules alive until the new ones were published. It has no practical application today, but it explains why old orders cite the 1957 Rules.

Rule 34 Repeal and saving

THE RULE SAYS

(1) Subject to the provisions of Rule 33, the Central Civil Services (Classification, Control and Appeal) Rules, 1957, and the Civilians in Defence Services (Classification, Control and Appeal) Rules, 1952, and any notifications or orders issued thereunder in so far as they are inconsistent with these rules, are hereby repealed.

Rule 34(1)

THE PROVISO

Provided that — (a) such repeal shall not affect the previous operation of the said rules, or any notification or order made, or anything done, or any action taken, thereunder; (b) any proceedings under the said rules, pending at the commencement of these rules shall be continued and disposed of, as far as may be, in accordance with the provisions of these rules, as if such proceedings were proceedings under these rules.

Proviso to Rule 34(1)

THE RULE SAYS

(2) Nothing in these rules shall be construed as depriving any person to whom these rules apply, of any right of appeal which had accrued to him under the rules, notification or orders in force before the commencement of these rules.

Rule 34(2)

THE RULE SAYS

(3) An appeal pending at the commencement of these rules against an order made before such commencement shall be considered and orders thereon shall be made, in accordance with these rules as if such orders were made and the appeals were preferred under these rules.

Rule 34(3)

THE RULE SAYS

(4) As from the commencement of these rules any appeal or application for review against any orders made before such commencement shall be preferred or made under these rules, as if such orders were made under these rules: Provided that nothing in these rules shall be construed as reducing any period of limitation for any appeal or review provided by any rule in force before the commencement of these rules.

Rule 34(4)

Vested rights survive

Rule 34(2) — an accrued right of appeal is not taken away.

Pending appeals

Rule 34(3) — decided under the new Rules, as if filed under them.

Limitation

Rule 34(4) — the new Rules cannot shorten a limitation period that had already begun.

Rule 35 Removal of doubts

THE RULE SAYS

If any doubt arises as to the interpretation of any of the provisions of these rules, the matter shall be referred to the President or such other authority as may be specified by the President by general or special order, and the President or such other authority shall decide the same.

Rule 35

The interpretation clause of last resort. Where the meaning of a rule is genuinely unclear, the question goes up to the **President** (normally, in practice, to DoPT) whose decision is final within the executive.

REMEMBER

Rule 35 is an **administrative** route, not a judicial one. It does not bar a court from interpreting the Rules — it only settles the Government's internal view.

Part IX in one line: serve every notice properly (30), use Rule 31 to condone delay, and remember 33-34 only matter for history.



BABU-JI SAYS

Short rules, long consequences. A missing acknowledgement of service has undone more penalty orders than any defect in the evidence.

THE SCHEDULE

FIVE PARTS, FIVE COLUMNS

The Schedule is the **operative table** of the Rules. Rules 5, 8, 9, 12 and 24 all point to it: it names each Service, its appointing authority, the authority competent to impose penalties and which penalties it may impose.



If your Service is in the Schedule, read your row. If it is not, you are in the General Central Service — and Rule 7 sends you back to the Schedule anyway.

Part of the Schedule	Covers
Part I	Central Civil Services, Group 'A'
Part II	Central Civil Services, Group 'B' (except civilians in Defence Services)
Part III	Central Civil Services, Group 'C' (except civilians in Defence Services)
Part IV	Central Civil Services, Group 'D' (except civilians in Defence Services)
Part V	Central Posts in the Defence Services

Column	What it tells you
(1) Serial number	The entry number — useful when an order cites “item 34 of Part II”
(2) Description of Service / post	The name of the Service, grade or post, including any grade pay or level description used in older entries
(3) Appointing authority	Who appoints — and therefore who is the appointing authority for Article 311 and Rules 10 and 12
(4) Authority competent to impose penalties	The disciplinary authority for that Service/post
(5) Penalties which it may impose	With reference to the item numbers of Rule 11 — e.g. “All” or “all minor penalties” or “(i) to (iv)”

How to read your row: find your Service in the right Part of the Schedule; read column (3) for your appointing authority; read column (4) for your disciplinary authority; read column (5) to see which of the nine Rule 11 penalties that authority can actually impose.

! **WATCH OUT**
Where the Schedule is silent, Rule 12(2) and Rule 24(1) supply the answer: the appointing authority, or the authority immediately superior to the maker of the order.

The Schedule **Recent amendments you should know about**

Notification	What changed
G.S.R. 156 dated 19 October 2022 (published 22 October 2022)	Schedule entries updated — the amendment immediately preceding the 2023 change
G.S.R. 18(E) dated 10 January 2023	Schedule, Part V (Defence Services) — entries relating to the Ordnance Factory Board (against S. Nos. 1 and 2, para (B)(xi)) omitted, following the creation of the Ordnance Factory Board successor entities
G.S.R. 337(E) dated 29 May 2024 (published 20 June 2024)	Schedule, Part V amended
G.S.R. 21(E) dated 12 January 2026	Rule 10(1) proviso substituted; Rule 12(4)(a) substituted — the CAG / IA&AD exception widened to Group 'C' Central Civil posts in the IA&AD

i **NOTE**
The Schedule is amended far more often than the numbered Rules, because reorganisations keep changing Departments and Services. Always check the Schedule in force on the **date of the order**, not the date of the incident.

Why the Schedule changes so often. Every time a Department is renamed, an autonomous body is merged, or a post is re-designated, the corresponding row of the Schedule must be rewritten. The Rules 1 to 35 change once a decade; the Schedule changes several times a year.

Which column do you read first?	What it decides
Column (3) — appointing authority	Article 311(1), Rule 10(1) (who may suspend), Rule 12(4)(a) (who may not punish), Rule 24 (appeal)
Column (4) — authority competent to impose penalties	The disciplinary authority for that Service or post
Column (5) — penalties which may be imposed	Whether the authority may impose all nine penalties or only the minor ones
Schedule is silent	Rule 12(2) and Rule 24(1) fill the gap: the appointing authority, or the authority immediately above the maker of the order

e **EXAMPLE**
A Ministry is reorganised and a Group 'B' post moves from one Service to another. Any suspension or penalty order passed after the reorganisation must be tested against the **new** Schedule row — even if the alleged misconduct happened years earlier.

! **WATCH OUT**
Three checks before you sign anything. (1) Is the post in an **organised Service** or in the **General Central Service**? (2) Does the Schedule row say “all penalties” or only the minor ones? (3) Has the row been **substituted** after the date of the charge sheet? A wrong row is a wrong authority, and a wrong authority is a void order.

Post in the case file	Where the answer sits
Member of an organised Group 'A' Service	Schedule, Part I — column (3) names the appointing authority
Group 'A' post in the General Central Service	Rule 8 delegation order, else the Schedule row for that post
Group 'B' or 'C' post in a Ministry	Schedule, Part II or III — read with Rule 9(1)
Group 'D' post, or a Defence civilian post	Schedule, Part IV or V — the empowering proviso to Rule 9(1)
Any post where the Schedule is silent	Rule 12(2) and Rule 24(1): the appointing authority, or the next authority above the maker of the order

MASTER CHARTS

FOUR POSTERS FOR YOUR WALL

Four posters to photograph, print and pin above your desk. They compress the whole rule-book into shapes you can recall under pressure.

Poster 1 All 35 rules in one line each

Rule	In one line	Rule	In one line
1	Name and commencement (1 Dec 1965)	19	Special procedure: conviction, impracticability, State security
2	Definitions — appointing authority, DA, Govt servant	20	Officers lent to another department/State
3	Application and exceptions	21	Officers borrowed from a State/authority
4	Classification of Services — Groups A to D	22	No appeal: President's orders, interlocutory, IO's orders
5	Services consist of what the Schedule says	23	Orders against which appeal lies
6	Classification of posts	24	Who is the appellate authority
6-A	Class I-IV now read as Group A-D	25	45 days to appeal
7	General Central Service is the default	26	Form and contents of the appeal
8	Group A appointed by the President (usually delegated)	27	Consideration: confirm, reduce, enhance, set aside, remit
9	Others appointed as the Schedule says	28	The original authority must implement the appellate order
10	Suspension: 3 grounds, 48 hours, 90 days, 180-day extensions	29	Revision by the President, CAG, HoD, appellate authority
11	Nine penalties + 2 provisos + 9 explanations	29-A	Review by the President on new material
12	Who may impose penalties	30	Service of orders and notices
13	Who may institute proceedings	31	Power to relax time-limits and condone delay
14	Procedure for major penalties — 24 sub-rules	32	Omitted
15	Action on the inquiry report	33	Transitory provisions
16	Procedure for minor penalties	34	Repeal and saving
17	Communication of the order	35	Removal of doubts — refer to the President
18	Common proceedings against several officers		

Poster 2 The timeline chart

Event	Time limit	Rule
Reply to the charge sheet	15 days (+15 at a time)	14(4)(b)
Absolute outer limit for the reply	**45 days** from receipt	Proviso to 14(4)(b)
First appearance before the IO	10 working days (+10)	14(7)
Inspection of documents	5 days (+5)	14(11)(i)
Notice for new documents	10 days (+10)	14(11)(iii)
Copies of witness statements	At least 3 days before examination	Note to 14(11)
Adjournment for defence preparation	Not more than 30 days	14(11)
Production of requisitioned documents	1 month (or non-availability certificate)	14(13)
Adjournment for new evidence	3 clear days	14(15)
Inquiry to be completed	6 months (+6 months at a time)	14(24)
Representation on the inquiry report	15 days	15(2)
Representation on UPSC advice	15 days	15(3)(b)
Suspension — first review	Before 90 days	10(6)
Suspension — each extension	Not more than 180 days	10(6)
Deemed suspension trigger	Custody/conviction exceeding 48 hours	10(2)
Appeal	45 days from delivery of the order	25
Revision by the appellate authority	6 months from the order	29(1)(v)

Poster 3 The four decision trees

Is an inquiry needed?

- Penalty in (v)-(ix)? → **Yes**, Rule 14.
- Penalty in (i)-(iv)? → Proposal + representation (Rule 16).
- Increment withheld beyond 3 years, with cumulative effect, or affecting pension? → **Yes**, Rule 16(1-A).
- Conviction / not practicable / State security? → Rule 19.
- Not a penalty under the Explanation? → No inquiry.

Which procedure for a minor penalty?

- Inform in writing of the proposal and the imputations.
- Give a reasonable opportunity to represent.
- Hold an inquiry only if the DA considers it necessary.
- Consult UPSC where required.
- Record a finding on each imputation.
- Pass a reasoned order and communicate it.

Which appellate authority?

- Schedule / President's order names one? → That authority.
- Group A or B, order by a subordinate of the Appointing Authority? → Appointing Authority.
- Group A or B, any other order? → **President**.
- Group C or D? → Authority immediately above the maker.
- Common proceeding? → Authority above the common DA.

Appeal or revision?

- Within 45 days and an appellate authority exists? → **Appeal**.
- No appeal lies, or the appeal period is over? → **Revision** (Rule 29).
- New material not available earlier? → **Review** (Rule 29-A), President only.
- Order of the President? → Judicial review / Rule 29-A.
- Interlocutory order? → Neither; raise it in the final appeal.

Poster 4 The 'order-quashing' checklist

Tribunals and High Courts quash penalty orders for the same handful of reasons. Run this checklist before signing — or, if you are the charged officer, before you draft the appeal.

1. Was the charge sheet **definite and distinct** — with imputations, documents and witnesses (Rule 14(3))?
2. Was a **Presenting Officer** appointed and the officer informed (Rule 14(5)(c))?
3. Was the officer given a real chance to **inspect documents** and receive **copies of witness statements** (Rule 14(11)?
4. Was the **Defence Assistant** request dealt with, in writing (Rule 14(8))?
5. Was the officer **generally questioned** on the circumstances appearing against him (Rule 14(18))?
6. Did the **Inquiry Officer** record reasons for every finding (Rule 14(23))?
7. Was a **copy of the report** and the **disagreement note** given, with **15 days** to reply (Rule 15(2))?
8. Was **UPSC advice** (where required) supplied, with 15 days to comment (Rule 15(3)(b))?
9. Did the **competent authority** sign the penalty order (Article 311(1) and Rule 12(4)(a))?
10. Is the order a **speaking order** — reasons, findings, penalty (Rule 17)?
11. Was the order **served** on the officer with all annexures (Rule 17 and Rule 30)?

! **WATCH OUT**
If **any** of these answers is “no”, the order is vulnerable. Fix the file before signature — after signature, the only fix is an appeal or a writ petition.

The same checklist works in reverse when you are the charged officer and the order has already been passed. Every “no” becomes one **ground of appeal**, cited by rule number, with the date from the file.

If this is missing	Frame the ground like this
Definite charges (14(3))	“The articles of charge are vague; I could not know what to meet. The inquiry is vitiated.”
Defence Assistant (14(8))	“My written request for a Defence Assistant was neither allowed nor rejected by order.”
General questioning (14(18))	“I did not examine myself, yet the Inquiring Authority never questioned me on the circumstances appearing against me.”
Report + 15 days (15(2))	“The inquiry report was not supplied to me before the penalty order, and I had no opportunity to represent.”
UPSC advice (15(3)(b))	“The Commission's advice was relied upon without being furnished to me for my comments.”
Competent authority (12(4)(a))	“The order is passed by an authority subordinate to the appointing authority, contrary to Article 311(1).”

TOOLKITS

FOUR READY RECKONERS

Four short checklists written from four different desks: the Disciplinary Authority, the Presenting Officer, the Inquiring Authority and the charged officer.

Toolkit A — For the Disciplinary Authority

Do

- Identify the **appointing authority** and your own competence first.
- Check the **limitation** for initiating the case; record reasons for delay.
- Frame **definite and distinct** articles of charge.
- Serve the charge sheet with **proof of service**.
- Apply your mind to the reply — do not merely "put up".
- Record the **tentative disagreement** note before sending the report.
- Pass a **speaking order** and communicate it with annexures.

Do not

- Order a major penalty through the Rule 16 route.
- Extend the defence reply beyond **45 days**.
- Impose a penalty without the report + 15 days under Rule 15(2).
- Ignore the Advice of the UPSC without recording reasons.
- Sign an order a subordinate authority is competent to sign.
- Sit on an appeal beyond three months without reasons.
- Use intemperate language in the order or in the noting.

Toolkit B — For the Presenting Officer

Do

- Read the charge sheet before the first hearing.
- Prove each document formally — mere marking is not proof.
- Examine witnesses in a logical sequence.
- Restrict re-examination to matters raised in cross.
- Keep the IO informed of any new evidence in advance.
- File written briefs — they help the IO write reasons.

Do not

- Act as if you are the Inquiring Authority.
- Argue with the charged officer or his Defence Assistant.
- Introduce surprise evidence without following Rule 14(15).
- Attempt to fill a **gap** in evidence (Note to 14(15)).
- Discuss the case with the IO outside the record.
- Threaten consequences during the hearing.

Toolkit C — For the Inquiring Authority

Do

- Issue written notices for every hearing and keep proof.
- Record the plea, sign it and obtain the officer's signature (14(9)).
- Allow inspection and copies within the time limits.
- Generally question the officer if he does not examine himself (14(18)).
- Write reasons for each finding; do not copy the PO's brief.
- Submit the report within **six months**, or seek extension in writing.
- Follow the order of sub-rules 14(7) to 14(24).

Do not

- Hold an ex parte inquiry without proof of service.
- Refuse a Defence Assistant without a written order.
- Record a finding on a **new** charge without a chance to defend (Explanation to 14(23)).
- Allow new evidence to fill a gap.
- Cross the six-month limit silently.
- Mix up the IO's role with the DA's role.

Toolkit D — For the charged officer

Do

- Acknowledge every notice and keep copies.
- Reply within 15 days — ask for extension **in writing**, within 45 days.
- Ask for documents and witness statements early.
- Name your Defence Assistant in writing at the first hearing.
- Cross-examine on the **document**, not on the person.
- File a written brief at the end.
- File the appeal within **45 days**, in your own name, complete.

Do not

- Boycott the inquiry — ex parte orders follow.
- Use disrespectful language in any representation.
- File a joint appeal with colleagues.
- Rely on oral requests — put everything in writing.
- Miss the 45-day appeal limit; if you do, apply for condonation with reasons.
- Assume reinstatement ends the case.

Toolkit E — For the appellate and reviewing authority

Do

- Check the appeal's **own name**, completeness and the 45-day stamp first.
- Consider condonation of delay by a **reasoned** order, not a rubber stamp.
- Read the inquiry record yourself — Rule 27 makes the appeal a re-hearing on the file.
- Give a **personal hearing** where Rule 27(2) asks for it and the rules of natural justice require it.
- Pass a **speaking order** on each ground; Rule 27(1) leaves no room for a one-line rejection.
- Send the order, with reasons, to the appellant and to the disciplinary authority.

Do not

- Sit on the file — a delayed appellate order is itself a ground for the next round.
- Enhance the penalty without notice and a fresh opportunity (Rule 27(2) proviso).
- Delegate the appellate power where Rule 25 fixes it in one authority.
- Reopen a case that is **time-barred** without recording why the delay is condoned.
- Ignore the 6-month limit for revision petitions under Rule 29(1)(v).
- Treat the appeal as a favour — it is a **statutory right** under Rule 22.

MODEL FORMS

FIVE FORMS YOU WILL ACTUALLY TYPE

Skeletons, not precedents. Each form lists only the elements the Rules require — fill the blanks, delete the notes in square brackets, and tick every element before you sign.



A form that follows the rule survives an appeal. A form that copies last year's file does not.

Form A — Charge memorandum — Rules 14(3) and 14(4)(a)

From: the Disciplinary Authority · **To:** [name, designation, office] · **No.** [file number] · **Date:** [date]. The memorandum goes out under the signature of the disciplinary authority, not of the vigilance section.

1. **Articles of charge** — one numbered article per allegation, each with the date, the place and the specific act or omission.
2. **Statement of imputations** — the facts and circumstances that support each article, in narrative form.
3. **List of documents** — the documents by which each article is proposed to be sustained.
4. **List of witnesses** — the witnesses by which each article is proposed to be proved.
5. **Covering note** — a written statement of defence is called for **within 15 days**, and whether the officer wishes to be heard in person.
6. **Defence Assistant** — the officer is told that a request for one may be made in the defence itself (Rule 14(8)).

! **REMEMBER**
Every article must be **definite and distinct**. A charge that says “misconduct generally” fails at the first appeal.

! **WATCH OUT**
The extension of time for the defence is **not automatic**: it is granted by a written order, and the total cannot exceed **45 days** from receipt of the articles of charge (proviso to Rule 14(4)(b)).

Form B — Written statement of defence — Rule 14(4)(b)

1. Admit, deny or explain each article **separately** — never a single blanket denial.
2. State whether you **desire to be heard in person**.
3. Name your **Defence Assistant**, if you want one (Rule 14(8)).
4. Ask for the **documents** you need to inspect, and for copies of **witness statements** (Rule 14(11)).
5. Sign and date it; keep a receipted copy and note the date of service.
6. If you cannot reply in time, apply for extension **in writing before** the 15 days run out.

! **REMEMBER**
A defence that raises no request for documents or witnesses leaves nothing on the record for the appeal.

Form C — Inquiry report — Rule 14(23)

1. The **articles of charge** and the **defence** of the officer.
2. The **points for determination** — one for each article of charge.
3. The **evidence** of each witness and each document, and the assessment of that evidence.
4. The **findings on each article**, with **reasons** for the finding.
5. A note of the **ex parte** proceedings, if any (Rules 14(11) and 14(13)).
6. The **record of inquiry**, indexed and paginated, with the signature of the Inquiring Authority on each page.

WATCH OUT
The report is a **finding**, not a recommendation. Do not propose a penalty — that is the function of the disciplinary authority under Rule 15.

Form D — Appeal memorandum — Rule 26

1. **Name, designation and office** of the appellant, and the **order appealed against** with its number and date.
2. **Facts** — in date order, with no adjectives.
3. **Grounds** — numbered, each quoting the **Rule** said to have been breached.
4. **Documents relied upon** — annexures A1, A2, A3 and so on.
5. **Prayer** — one of the four courses open to the appellate authority under Rule 27(2).
6. **Verification** and signature, in the appellant's **own name** (Rule 26(1)).

REMEMBER
File within **45 days** of delivery of the order. A late appeal needs an application for **condonation** with reasons — not a paragraph of apology.

Form E — Suspension order — Rule 10

1. Identify the **ground**: 10(1)(a) proceeding contemplated or pending; 10(1)(aa) State security; 10(1)(b) criminal case pending.
2. Record the **date of the charge sheet or the FIR** and the present stage of the case.
3. State that the officer is **suspended with effect from [date]**, and that **subsistence allowance** will be paid under FR 53.
4. Name the **headquarters** during suspension and the officer to whom the suspended officer reports.
5. Record that the **review** under Rule 10(6) will be placed before the Review Committee **before 90 days**.

WATCH OUT
Suspension is **not** a penalty and the order must not read like one. Words such as “punished by suspension” have been enough to quash an order.

REMEMBER
Number every annexure in the order in which it is mentioned, and keep a **file copy with the date of service** noted on the back. In an appeal, the service date decides the 45-day clock.

Five forms, one habit: find the rule that authorises the paper before you fill in the blanks.

REVISION

THIRTY QUESTIONS, THIRTY ANSWERS

Rapid-fire revision for departmental examinations and for the interview board. Cover the right-hand column and test yourself.



If you can answer thirty, you can hold your own in any establishment section.

Q	A
When did the CCS (CCA) Rules, 1965 come into force?	1 December 1965 (Rule 1)
How many penalties are there?	Nine — five minor clauses (i) to (iv), including (iii-a), and five major (v) to (ix)
Which clause was inserted later into the minor penalties?	Clause (iii-a) — reduction to a lower stage by one stage for up to three years, without cumulative effect
Is suspension a penalty?	No. It is regulated by Rule 10 and is not in the Rule 11 list
Grounds for suspension?	(a) proceeding contemplated/pending; (aa) activities prejudicial to State security; (b) criminal case pending
Deemed suspension trigger?	Custody exceeding 48 hours, or conviction with imprisonment exceeding 48 hours
First review of suspension?	Before 90 days, on the Review Committee's recommendation
Maximum extension at a time?	180 days
Time to reply to a charge sheet?	15 days, extendable 15 days at a time — absolute ceiling 45 days
Time for the first appearance before the IO?	10 working days, extendable by 10 days
Who is the Presenting Officer?	A Government servant or legal practitioner appointed under Rule 14(5)(c)
When can you engage a lawyer?	Only if the PO is a legal practitioner, or the DA permits
How many pending cases disqualify a Defence Assistant?	Three
Time to complete an inquiry?	Six months, extendable six months at a time
What must the inquiry report contain?	Charges, defence, assessment of evidence, findings with reasons
Is a copy of the report given even if favourable?	Yes — Rule 15(2) says “irrespective of whether the report is favourable or not”
Time to represent on the report?	15 days
Must the UPSC advice be given to the officer?	Yes, with 15 days to represent (Rule 15(3)(b))
Is there a second show-cause on the proposed penalty?	No — Rule 15(6) expressly says it is not necessary
When is an inquiry mandatory for a minor penalty?	Rule 16(1-A): increment withholding affecting pension, beyond 3 years, or with cumulative effect
Which penalties can a minor-penalty authority award after a Rule 14 inquiry?	It forwards the record under Rule 14(21)(a); it cannot impose (v)-(ix)
Can a subordinate authority impose a major penalty?	No — Rule 12(4)(a) and Article 311(1)
Who may order common proceedings?	The President, or an authority competent to dismiss all the officers (Rule 18)
When can an inquiry be dispensed with?	Conviction, impracticability with recorded reasons, or State security (Rule 19)
Time to appeal?	45 days from delivery of the order, extendable on sufficient cause
Can you file a joint appeal?	No — separately and in your own name (Rule 26(1))
Who is the appellate authority for a Group C employee?	The authority immediately superior to the maker of the order
Where does an appeal against the President's order lie?	Nowhere — Rule 22(i); only judicial review or Rule 29-A
Time limit for revision by the appellate authority?	Six months from the date of the order (Rule 29(1)(v))
Who can review an order, and on what ground?	The President, on new material not available earlier (Rule 29-A)

REFERENCE

GLOSSARY, SOURCES AND DISCLAIMER

The closing pages are for the file: what the words mean, where the text comes from, and what this book is not.

Glossary — Words that appear in the Rules

Article 309
The Constitution's provision empowering the President (and Governors) to make rules for Government servants.

Article 311
Protection against dismissal, removal or reduction in rank by a subordinate authority, and without an inquiry.

Article 148(5)
Requires consultation with the CAG before rules affecting the IA&AD are made.

Proviso
A clause beginning “Provided that” which carves out an exception or condition.

Explanation
A clause that clarifies how a provision is to be read; it is part of the rule.

Speaking order
An order that records reasons — as opposed to a bare or non-speaking order.

Ex parte
Proceeding in the absence of the charged officer, after proper notice.

Lacuna
A defect or gap in the evidence already produced.

Suo motu
On the authority's own motion, without an application.

Remit
Send the case back to the lower authority for fresh consideration.

Subsistence allowance
The reduced pay given during suspension under Fundamental Rule 53.

Sealed cover
A procedure where the findings of a selection board are kept confidential pending the disciplinary case.

Sources — Where this text comes from

- The Central Civil Services (Classification, Control and Appeal) Rules, 1965, as published by the Department of Personnel and Training and reproduced in the DoPT compilation updated to 15 October 2018 (rules 1 to 35 and the Schedule).
- DoPT notification **G.S.R. 21(E)** dated **12 January 2026** (published in the Gazette on 14 January 2026) — substituting the proviso to Rule 10(1) and clause (a) of Rule 12(4).
- DoPT notification **G.S.R. 337(E)** dated **29 May 2024** — amendment to the Schedule, Part V.
- DoPT notification **G.S.R. 18(E)** dated **10 January 2023** — amendment to the Schedule, Part V (Ordnance Factory Board entries omitted).
- The Central Civil Services (Classification, Control and Appeal) (Second Amendment) Rules, **2014** (notified 31 October 2014) — the right to be supplied the UPSC's advice and to represent on it (Rules 15(3), 19, 27 and 29), and the omission of Rule 32.
- The Central Civil Services (Classification, Control and Appeal) Amendment Rules, **2017** — **G.S.R. 548(E) dated 2 June 2017** — which introduced the fixed timelines in Rules 14(4)(b), 14(7), 14(11), 14(13), 14(15) and 14(24).

- DoPT O.M. dated 29 March 2023 and 26 March 2024 on the handling of disciplinary proceedings; DoPT's Information Document on Suspension (updated 4 November 2022); and the Fundamental Rules (FR 53 and FR 54) for subsistence allowance and the treatment of suspension periods.
- Case-law principles referred to in the book (Ajay Kumar Choudhary; Tulsiram Patel; S.K. Kapoor; Radhey Shyam Gupta; Pavanendra Narayan Verma) are used only to explain practice — always read the judgment itself before citing it.

! **WATCH OUT**
Rules are amended frequently and through instructions that are not part of the Rules themselves. Before acting in a live case, check the **latest DoPT notification and the Schedule entry** for your Service.

Where to check — Four official doors (tap to open)

Every link below opens the official portal in your PDF reader or browser. The rules change by notification — the portal, not this book, is the last word.

DoPT https://dopt.gov.in
The Department of Personnel and Training — the rule-making authority for the CCS (CCA) Rules; its **Circulars** and **Notified Rules** sections carry every amendment.

Gazette of India https://egazette.gov.in
The official Gazette. A rule takes effect from the date of publication here (Rule 1, and the commencement clauses of every amendment).

India Code https://www.indiacode.nic.in
The consolidated statute database of the Government of India — useful for the bare text and for cross-checking a rule number.

CVC https://cvc.gov.in
The Central Vigilance Commission — circulars on vigilance procedure, time-limits and the handling of departmental proceedings.

i **NOTE**
Links are correct as on 1 November 2026. If a portal has moved, search the department name together with the rule number — the text of the Rules itself does not change with a website.

Disclaimer — What this book is — and is not

This is an **educational comic-book guide**. It explains the CCS (CCA) Rules, 1965 in plain language and summarises the practice around them. It is not legal advice, not an official publication of the Government of India, and not a substitute for the Gazette text of the Rules, the Schedule, or the advice of your Establishment or Vigilance section.

Every quotation has been checked against the published text. Where the Rules have been amended — most recently on 12 January 2026 — the book shows both the current language and what changed. If you find a discrepancy between this book and the Gazette, **the Gazette prevails**.

Prepared as on **1 November 2026**.

“Rules are not chains. They are the rails that let a case travel safely to its destination.” — Babu-ji

THE END · AND THE BEGINNING

Now you know the whole rule-book.

Thirty-five rules, one Schedule and every proviso in between — read once, marked up, and ready for the day a charge sheet lands on your desk.

WHAT TO DO NEXT

1. Read Part VI once, slowly — it is where cases are won.
2. Pin Poster 1 (all 35 rules) above your desk.
3. Work through the thirty questions before an exam.
4. Copy the five model forms into your own template file.
5. Check the DoPT portal before you cite this book in a file.



“Rules are not chains. They are the rails that let a case travel safely to its destination.”

— Babu-ji, Establishment Section

SARKARI RULES · SIMPLIFIED SERIES

CCS (CCA) Rules, 1965 — The Comic Book · Edition 2026 · Position as on 1 November 2026

Educational guide only. The Gazette text of the Rules, and the DoPT instructions in force, always prevail.

LAW MADE SIMPLE

35 rules · 9 penalties · 9 Parts · 1 Schedule · nothing left out

Keep this book. Teach one colleague the eight stations of a case.

Version 1.0 · compiled 1 November 2026 · every rule, proviso and exception, in one place